

ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO.: 73232 NAME: Thomas B. Worth FIRM NAME: Friedman McCubbin Law Group LLP STREET ADDRESS: 425 California St., 25th Fl. CITY: San Francisco STATE: CA ZIP CODE: 94104 TELEPHONE NO.: 415-434-2226 FAX NO.: E-MAIL ADDRESS: tom@fomlaw.com ATTORNEY FOR (name): 17th and Peralta, LLC, Petitioner	FOR COURT USE ONLY FILED Superior Court of California County of Alameda 09/15/2025 Clad File, Executive Officer / Clerk of the Court By: <u>S. Hassan</u> Deputy
SUPERIOR COURT OF CALIFORNIA, COUNTY OF ALAMEDA STREET ADDRESS: 2120 Martin Luther King Jr. Way MAILING ADDRESS: CITY AND ZIP CODE: Berkeley, CA 94704 BRANCH NAME:	CASE NUMBER: 25PR142709
ESTATE OF (name): JOHN L. GOMPERTZ DECEDENT	HEARING DATE AND TIME: 10/17/2025 9:45 AM DEPT.: 202
PETITION FOR ☐ Probate of ☐ Lost Will and for Letters Testamentary ☒ Probate of ☐ Lost Will and for Letters of Administration with Will Annexed ☐ Letters of Administration ☐ Letters of Special Administration ☐ with general powers ☒ Authorization to Administer Under the Independent Administration of Estates Act ☐ with limited authority	

1. Publication will be in (specify name of newspaper): East Bay Times

- a. ☐ Publication requested.
 b. ☒ Publication to be arranged.

2. **Petitioner (name each):**
 17th and Peralta, LLC

requests that

- a. ☒ decedent's will and codicils, if any, be admitted to probate.
 b. (name): Joanne Gompertz Martin be appointed
 (1) ☐ executor
 (2) ☒ administrator with will annexed
 (3) ☐ administrator
 (4) ☐ special administrator ☐ with general powers
 and Letters issue upon qualification.
 c. ☒ full ☐ limited authority be granted to administer under the Independent Administration of Estates Act.
 d. (1) ☒ bond not be required for the reasons stated in item 3e.
 (2) ☐ \$ bond be fixed. The bond will be furnished by an admitted surety insurer or as otherwise
 provided by law. (Specify reasons in Attachment 2 if the amount is different from the maximum required by Prob.
 Code, § 8482.)
 (3) ☐ \$ in deposits in a blocked account be allowed. Receipts will be filed.
 (Specify institution and location):

3. a. Decedent died on (date): 11/14/2004 at (place): Oakland, Alameda County, California
 (1) ☒ a resident of the county named above.
 (2) ☐ a nonresident of California and left an estate in the county named above located at (specify location permitting
 publication in the newspaper named in item 1):

b. ☐ Decedent was a citizen of a country other than the United States (specify country):

c. Street address, city, and county of decedent's residence at time of death (specify):
 1850 Alice Street, #605, Oakland, CA 94612

ESTATE OF (name):	JOHN L. GOMPERTZ DECEDENT	CASE NUMBER:
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3. d. **Character and estimated value of the property of the estate** (complete in all cases):

- (1) Personal property: \$ _____
- (2) Annual gross income from
- (a) real property: \$ _____
- (b) personal property: \$ _____
- (3) **Subtotal** (add (1) and (2)): \$ _____
- (4) Gross fair market value of real property: \$ 160,000.00
- (5) (Less) Encumbrances: (\$ _____)
- (6) Net value of real property: \$ 160,000.00
- (7) **Total** (add (3) and (6)): \$ 160,000.00

- e. (1) ☐ Will waives bond. ☐ Special administrator is the named executor, and the will waives bond.
- (2) ☒ All beneficiaries are adults and have waived bond, and the will does not require a bond. (Affix waiver as Attachment 3e(2).)
- (3) ☐ All heirs at law are adults and have waived bond. (Affix waiver as Attachment 3e(3).)
- (4) ☐ Sole personal representative is a corporate fiduciary or an exempt government agency.
- f. (1) ☐ Decedent died intestate.
- (2) ☒ Copy of decedent's will dated: May 16, 1997 ☒ codicil dated (specify for each):
November 15, 2001
are affixed as Attachment 3f(2). (Include typed copies of handwritten documents and English translations of foreign-language documents.)
- ☒ The will and all codicils are self-proving (Prob. Code, § 8220).
- (3) ☐ The original of the will and/or codicil identified above has been lost. (Affix a copy of the lost will or codicil or a written statement of the testamentary words or their substance in Attachment 3f(3), and state reasons in that attachment why the presumption in Prob. Code, § 6124 does not apply.)

g. **Appointment of personal representative** (check all applicable boxes):

- (1) Appointment of executor or administrator with will annexed:
- (a) ☐ Proposed executor is named as executor in the will and consents to act.
- (b) ☐ No executor is named in the will.
- (c) ☒ Proposed personal representative is a nominee of a person entitled to Letters. (Affix nomination as Attachment 3g(1)(c).)
- (d) ☒ Other named executors will not act because of ☐ death ☒ declination
☐ other reasons (specify):

☐ Continued in Attachment 3g(1)(d).

- (2) Appointment of administrator:
- (a) ☐ Petitioner is a person entitled to Letters. (If necessary, explain priority in Attachment 3g(2)(a).)
- (b) ☐ Petitioner is a nominee of a person entitled to Letters. (Affix nomination as Attachment 3g(2)(b).)
- (c) ☐ Petitioner is related to the decedent as (specify):
- (3) ☐ Appointment of special administrator requested. (Specify grounds and requested powers in Attachment 3g(3).)
- (4) ☐ Proposed personal representative would be a successor personal representative.

h. Proposed personal representative is a

- (1) ☒ resident of California.
- (2) ☐ nonresident of California (specify permanent address):
- (3) ☒ resident of the United States.
- (4) ☐ nonresident of the United States.

ESTATE OF (name):	JOHN L. GOMPERTZ DECEDENT	CASE NUMBER:
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4. ☒ Decedent's will does not preclude administration of this estate under the Independent Administration of Estates Act.
5. a. Decedent was survived by (check items (1) or (2), and (3) or (4), and (5) or (6), and (7) or (8))
- (1) ☐ spouse.
 - (2) ☒ no spouse as follows:
 - (a) ☐ divorced or never married.
 - (b) ☒ spouse deceased.
 - (3) ☐ registered domestic partner.
 - (4) ☒ no registered domestic partner. (See Fam. Code, § 297.5(c); Prob. Code, §§ 37(b), 6401(c), and 6402.)
 - (5) ☒ child as follows:
 - (a) ☒ natural or adopted.
 - (b) ☐ natural adopted by a third party.
 - (6) ☐ no child.
 - (7) ☐ issue of a predeceased child.
 - (8) ☒ no issue of a predeceased child.
- b. Decedent ☐ was ☒ was not survived by a stepchild or foster child or children who would have been adopted by decedent but for a legal barrier. (See Prob. Code, § 6454.)
6. (Complete if decedent was survived by (1) a spouse or registered domestic partner but no issue (only a or b apply), or (2) no spouse, registered domestic partner, or issue. (Check the **first** box that applies):
- a. ☐ Decedent was survived by a parent or parents who are listed in item 8.
 - b. ☐ Decedent was survived by issue of deceased parents, all of whom are listed in item 8.
 - c. ☐ Decedent was survived by a grandparent or grandparents who are listed in item 8.
 - d. ☐ Decedent was survived by issue of grandparents, all of whom are listed in item 8.
 - e. ☐ Decedent was survived by issue of a predeceased spouse, all of whom are listed in item 8.
 - f. ☐ Decedent was survived by next of kin, all of whom are listed in item 8.
 - g. ☐ Decedent was survived by parents of a predeceased spouse or issue of those parents, if both are predeceased, all of whom are listed in item 8.
 - h. ☐ Decedent was survived by no known next of kin.
7. (Complete only if no spouse or issue survived decedent.)
- a. ☐ Decedent had no predeceased spouse.
 - b. ☐ Decedent had a predeceased spouse who
 - (1) ☐ died not more than 15 years before decedent and who owned an interest in **real property** that passed to decedent,
 - (2) ☐ died not more than five years before decedent and who owned **personal property** valued at \$10,000 or more that passed to decedent, (If you checked (1) or (2), check only the **first** box that applies):
 - (a) ☐ Decedent was survived by issue of a predeceased spouse, all of whom are listed in item 8.
 - (b) ☐ Decedent was survived by a parent or parents of the predeceased spouse who are listed in item 8.
 - (c) ☐ Decedent was survived by issue of a parent of the predeceased spouse, all of whom are listed in item 8.
 - (d) ☐ Decedent was survived by next of kin of the decedent, all of whom are listed in item 8.
 - (e) ☐ Decedent was survived by next of kin of the predeceased spouse, all of whom are listed in item 8.
 - (3) ☐ neither (1) nor (2) apply.
8. Listed on the next page are the names, relationships to decedent, ages, and addresses, so far as known to or reasonably ascertainable by petitioner, of (1) all persons mentioned in decedent's will or any codicil, whether living or deceased; (2) all persons named or checked in items 2, 5, 6, and 7; and (3) all beneficiaries of a trust named in decedent's will or any codicil in which the trustee and personal representative are the same person.

ESTATE OF (name):	JOHN L. GOMPERTZ DECEDENT	CASE NUMBER:
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8. Name and relationship to decedent Age Address
SEE ATTACHMENT 8

☐ Continued on Attachment 8.

9. Number of pages attached: 14

Date:

THOMAS B. WORTH

(TYPE OR PRINT NAME OF ATTORNEY)

(SIGNATURE OF ATTORNEY) *

* (Signatures of all petitioners are also required. All petitioners must sign, but the petition may be verified by any one of them (Prob. Code, §§ 1020, 1021; Cal. Rules of Court, rule 7.103).)

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: 9/15/25

17th and Peralta, LLC By: Rudy Rucker

(TYPE OR PRINT NAME OF PETITIONER)

(SIGNATURE OF PETITIONER)

Alejandro Menendez

(TYPE OR PRINT NAME OF PETITIONER)

(SIGNATURE OF PETITIONER)

Signatures of additional petitioners follow last attachment.

ESTATE OF (name):	JOHN L. GOMPERTZ DECEDENT	CASE NUMBER:
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8. Name and relationship to decedent Age Address
SEE ATTACHMENT 8

☐ Continued on Attachment 8.

9. Number of pages attached: 14

Date: 9/15/25

THOMAS B. WORTH

(TYPE OR PRINT NAME OF ATTORNEY)





(SIGNATURE OF ATTORNEY) *

* (Signatures of all petitioners are also required. All petitioners must sign, but the petition may be verified by any one of them (Prob. Code, §§ 1020, 1021; Cal. Rules of Court, rule 7.103).)

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date:

17th and Peralta, LLC By:

(TYPE OR PRINT NAME OF PETITIONER)



(SIGNATURE OF PETITIONER)



(TYPE OR PRINT NAME OF PETITIONER)

(SIGNATURE OF PETITIONER)

Signatures of additional petitioners follow last attachment.

ATTACHMENT 2

Statement of Interest of Petitioner

Petitioner, 17th and Peralta, LLC, is a limited liability company duly organized and existing under the laws of the State of California. Petitioner has entered into written contracts with the heirs of John L. Gompertz (“Decedent”), to purchase Decedent’s interest in certain real property located at Mission Block 139, San Francisco, California, Assessor’s Parcel Number 3639-036A (“Subject Property”). Decedent inherited his undivided 50% interest in the Subject Property through the estate of his father, Charles W. Gompertz, as set forth in that certain Order Establishing Estate’s Claim of Ownership to Property, etc. filed on August 4, 2025 in the records of Alameda County Superior Court (Case No. 24PR094104).

In order for title to the Property to be conveyed pursuant to these contracts, it is necessary for title to vest in Decedent’s successors in interest through administration of Decedent’s estate. The beneficiary of Decedent’s Will dated May 16, 1997 is Joanne Gompertz Martin, as successor trustee of the Declaration of Trust dated May 27, 1977, as amended and restated, which was established by John L. Gompertz and Margaret B. Gompertz as trustors (“the Trust”). The residuary beneficiaries of the Trust are Decedent’s children (Decedent’s son Charles B. Gompertz is now deceased; therefore his share is distributable to his estate).

Petitioner has a direct property interest affected by the outcome of these proceedings, as defined under Probate Code §48, in that Petitioner’s contractual right to purchase the Property cannot be consummated until the estate is administered and the ultimate heirs receive legal title.

Accordingly, Petitioner is an “interested person” within the meaning of Probate Code §§48 and 8000, and has standing to file this petition for administration.

Petitioner does not seek to be appointed as personal representative of the estate. Instead, Petitioner requests that the Court appoint Joanne Gompertz Martin, one of Decedent’s children, as Administrator with the Will Annexed as set forth in the Petition for Probate.

LAST WILL AND TESTAMENT

OF

JOHN L. GOMPERTZ

I, JOHN L. GOMPERTZ, make, publish and declare this my Last Will and Testament in the manner following:

I.

REVOCATION OF PRIOR TESTAMENTARY INSTRUMENTS: I revoke all testamentary instruments heretofore made by me.

II.

FAMILY STATUS: I am married to MARGARET B. GOMPERTZ ("my spouse"). I have three adult children, to wit: CHARLES BATES GOMPERTZ, MARGARET GOMPERTZ MERRITTS and JOANNE GOMPERTZ MARTIN. I have eleven grandchildren, to wit: PAMELA GOMPERTZ SCHMITZ, MARGARET GOMPERTZ GILKEY, JOHN LANGDON GOMPERTZ II, ROSS LEE GOMPERTZ, DAVID CHANDLER MELVIN, LAWRENCE HENRY MELVIN, CHRISTOPHER FRANK COOPER, DANIEL COOPER, MARIAN PRENTICE SCHINSKI, ELIZABETH GOMPERTZ DORWARD and JULIE BATES DePOLO.

I have no other children or issue of deceased children.

III.

NOMINATION AND POWERS OF EXECUTOR:

A. I nominate the following persons in the order named to serve as Executor of this Will:

1. MARGARET B. GOMPERTZ
2. CHARLES BATES GOMPERTZ
3. LESLIE ROSS GOMPERTZ

My Executor shall serve without bond.

B. I grant my Executor the following powers:

1. Exchange, Sell or Lease: To exchange, sell or lease any property of my estate, with or without notice, at public or private sale, subject only to such confirmation as may be required by law; without in any way limiting the foregoing, I specifically authorize my Executor to sell assets to the Trustee of the Trust Agreement identified in this Will;

2. Borrow and Encumber. To borrow money from any source, including the Trustee of the Trust Agreement identified in this Will, and to encumber or hypothecate by mortgage, deed of trust, pledge or otherwise all or any portion of my estate;

3. Invest and Reinvest: To invest and reinvest any surplus monies at any time forming part of my estate in every kind of property, real, personal, or mixed, and every kind of investment, specifically including, but not limited to, improved and unimproved real property, interest-bearing accounts, corporate and government obligations of every kind, preferred or common stocks, shares of investment trusts, investment companies and mutual funds and stocks, obligations and shares or units of common trust funds of any corporate fiduciary, in which persons of prudence, discretion and intelligence would invest in the management of their own affairs. My Executor shall not be liable for failure to invest as provided herein;

4. Divide and Distribute: To partition, allot and distribute any property in my estate, which is not specifically bequeathed or devised; on any preliminary or

final distribution, pro rata or otherwise, in cash or kind, including undivided interests in my estate or any part of it, or partly in cash and partly in kind, in my Executor's absolute discretion;

5. Nominate Executor: Except as otherwise provided in Paragraph A of this Article, to nominate any other person or entity co-executor, a successor executor or an ancillary executor, without bond or other security, and any executor so appointed shall have all the rights and duties given to my Executor under this Will;

6. Make Tax Decisions: I authorize my Executor to make the following choices or elections in my Executor's absolute discretion, regardless of the resulting effect on any other provisions of this Will or on any person interested in my estate or in the amount of any of the taxes referred to:

Choose a valuation date for estate tax purposes and choose the methods to pay estate or inheritance taxes;

Elect to treat or use an item, for either federal or state tax purposes, either as an income tax deduction or as a death tax deduction;

Determine when a particular item is to be treated as taken into income or used as a tax deduction, to the extent the law provides that choice;

Disclaim all or any portion of any interest in property passing to my estate at or after my death;

Join with my spouse or my spouse's estate in filing joint income or gift tax returns for any years for which I have not filed returns before my death and consent to any gifts made by my spouse as being made one-half by me for gift tax purposes, even though any of these actions may subject my estate to additional tax liabilities.

Provided, further, that no person adversely affected by any of these choices is entitled to any reimbursement or adjustment and my Executor is not required to make any adjustment between income and principal or in the amount of any property passing under this Will as a result of any election under this provision.

7. Power to Pay Bequests for Benefit of Minors or Incompetents: If at the date of distribution of any property from my estate, the beneficiary of the

property under my Will is a minor, or under any other legal disability, or unable, in my Executor's opinion, to administer the property properly by reason of mental or physical illness or disability, my Executor is empowered to distribute the property, in my Executor's sole discretion, to, including but not limited to, any one or more of the following persons for the benefit of the beneficiary (a) a legally appointed guardian or conservator of the estate of the beneficiary; or (b) a person holding a Durable Power of Attorney; or (c) if the beneficiary is a minor, his or her parent or custodian under any applicable Uniform Gifts to Minors Act; provided that if no custodian is then in existence, my Executor is empowered to designate a custodian for this purpose from among those persons qualified to serve. I authorize my Executor to accept the receipt of any distributee in full satisfaction and discharge of the distribution of such property;

8. Independent Administration of Estates Act. My Executor may administer my estate under the California Independent Administration of Estates Act with full powers.

IV.

DISPOSITION OF ESTATE:

A. I give my entire estate, IN TRUST, to the Trustee or Trustees then in office under the Declaration of Trust dated May 27, 1977, as amended and restated, signed and executed by JOHN L. GOMPERTZ and MARGARET B. GOMPERTZ as Trustors and JOHN L. GOMPERTZ and MARGARET B. GOMPERTZ as trustee, to hold, administer and distribute as provided in that Trust Agreement including any amendments made to it before my death.

B. If for any reason the disposition under paragraph A above of this Article is inoperative or invalid, or if the Declaration of Trust dated May 27, 1977, as amended and restated, has been revoked, I give my entire estate, IN TRUST, to the trustee or trustees designated in that Trust Agreement as trustee or trustees of a testamentary trust to hold,

administer and distribute as provided in the current provisions of that Trust Agreement, which, for such purpose, I incorporate by reference into this Will.

V.

GENERAL WILL PROVISIONS:

A. If any provision of this Will is unenforceable, the remaining provisions shall be carried into effect.

B. Headings are inserted in this Will for convenience of reference only and shall not be used to interpret or construe its provisions.

C. Except as otherwise provided in this Will, I intentionally and with full knowledge of the consequences have omitted to provide in this Will for any of my heirs living at the date of my death.

D. If any beneficiary under this Will in any manner, directly or indirectly, either in his or her name or in the name of another, contests, controverts, attacks or disputes the validity of this Will or any provision contained herein, any share or interest in my estate given to that contesting beneficiary under this Will is revoked and shall be disposed of in the same manner provided herein as if that contesting beneficiary had predeceased me without leaving issue.

I subscribe my name to this Will this 16th day of May
1997, at Oakland, California.

John L. Gompertz
JOHN L. GOMPERTZ

Witnesses:

John Becken

Pamela J. Traxler

On the date written below, JOHN L. GOMPERTZ declared to us, the undersigned, that this instrument consisting of seven (7) pages, including this page, was his Will, and he requested us to act as witnesses to it. He thereupon signed this Will in our presence, all of us being present at the same time. We now at his request, in his presence and in the presence of each other subscribe our names as witnesses, and each of us knows that each signature is the true signature of the person who signed.

We are acquainted with JOHN L. GOMPERTZ. At this time he is over the age of eighteen (18) years and, to the best of our knowledge, is of sound mind and not acting under duress, menace, fraud or undue influence.

Each of us is over eighteen (18) years of age, is a competent witness and resides at the address set forth after his or her name. We declare under penalty of perjury that the foregoing is true and correct.

Executed this 16 day of May, 1997, at Oakland, California.

John Becken
(Signature)

John Becken
(Printed Name and Address)

77 Thacker Ave
Piedmont, Calif

Pamela J. Martin
(Signature)

Pamela J. Martin
(Printed Name and Address)

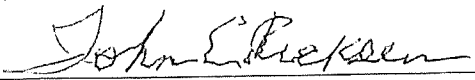
3278 Garfield
Alameda CA

Estate of John L. Gompertz - Attachment 3g(1)(d)

DECLINATION TO ACT AS EXECUTOR

John L. Gompertz executed a Last Will and Testament of John L. Gompertz on May 16, 1997 ("the Will") and a First Codicil to Last Will and Testament dated November 15, 2001 ("the Codicil"). I am nominated as executor in the Codicil, followed by William C. Robbins III. I hereby decline to act as executor of the Will.

Dated: SEPT. 4, 2025



JOHN C. RICKSEN

DECLINATION TO ACT AS EXECUTOR

John L. Gompertz executed a Last Will and Testament of John L. Gompertz on May 16, 1997 ("the Will") and a First Codicil to Last Will and Testament dated November 15, 2001 ("the Codicil"). John C. Ricksen is nominated as executor in the Codicil, followed by me as successor executor. I hereby decline to act as executor of the Will.

Dated: September 6, 2025



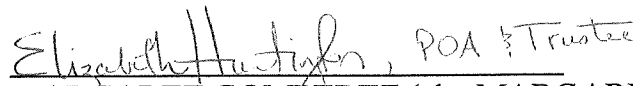
WILLIAM C. ROBBINS III

NOMINATION OF ADMINISTRATOR WITH WILL ANNEXED

The Petition for Probate of Lost Will and for Letters Testamentary with Will Annexed filed by 17th and Peralta, LLC as Petitioners, to which this nomination is attached, seeks the appointment of Joanne Gompertz Martin as Administrator with Will Annexed.

I am a child of the Decedent, John L. Gompertz ("Decedent"). I have one deceased sibling, Charles B. Gompertz (who died October 2, 2018) and one living sibling, Joanne Gompertz Martin. Decedent's First Codicil to Last Will and Testament dated November 15, 2001 nominates John C. Rickson as executor and William C. Robbins III as successor executor; however, they both have declined to act as executor (their written declinations are on file in this proceeding), leaving a vacancy. As the children of Decedent, Joanne Gompertz Martin and I hold a priority position to be appointed Administrator with Will Annexed pursuant to California Probate Code §8461(b). In accordance with California Probate Code section 8465(a), I hereby decline appointment as Administrator with Will Annexed and nominate Joanne Gomperz Martin to act in that capacity.

Dated: September 5, 2025


MARGARET GOMPERTZ (aka MARGARET GOMPERTZ MERRITTS)

CONSENT TO ACT AS ADMINISTRATOR

The Petition for Probate of Lost Will and for Letters Testamentary with Will Annexed filed by 17th and Peralta, LLC as Petitioners, to which this Consent to Act as Administrator is attached, seeks my appointment as Administrator with Will Annexed.

I am a child of the Decedent, John L. Gompertz ("Decedent"). I have one deceased sibling, Charles B. Gompertz (who died October 2, 2018) and one living sibling, Margaret Gompertz (identified in Decedent's Will as Margaret Gompertz Merritts). Decedent's First Codicil to Last Will and Testament dated November 15, 2001 nominates John C. Ricksen as executor and William C. Robbins III as successor executor; however, they both have declined to act as executor (their written declinations are on file in this proceeding), leaving a vacancy. As the children of Decedent, Margaret Gompertz and I hold a priority position to be appointed Administrator with Will Annexed pursuant to California Probate Code §8461(b). In accordance with California Probate Code section 8465(a), Margaret Gompertz has declined to act as Administrator with Will Annexed and has nominated me to act in that capacity. I hereby consent to act as Administrator with Will Annexed.

Dated: Sept. 5, 2025


JOANNE GOMPERTZ MARTIN

ATTACHMENT 8 TO PETITION FOR PROBATE

Estate of John L. Gompertz

<u>Name and Address</u>	<u>Age</u>	<u>Relationship</u>
Margaret Bates Gompertz (Deceased: December 30, 1997)	N/A	Spouse
Charles B. Gompertz (Deceased: 10/2/2018)	N/A	Child; beneficiary of Trust B under Declaration of Trust dated May 27, 1977 (devisee trust).
Estate of Charles B. Gompertz c/o Leslie Ross Gompertz P. O. Box 713 Nicasio, CA 94946	Adult	Estate of child who survived Decedent but is now deceased.
Leslie Ross Gompertz P. O. Box 713 Nicasio, CA 94946	Adult	Daughter-in-law (spouse of Charles B. Gompertz); nominated executor (superseded by First Codicil)
Joanne Gompertz Martin 913 So. Eliseo Drive Greenbrae, CA 94904	Adult	Child; heir-at-law; nominated Administrator with Will Annexed; beneficiary and Trustee of Trust B under Declaration of Trust dated May 27, 1977 (devisee trust).
Margaret Gompertz Huntington (identified in the Will as Margaret Gompertz Merritts) 930 George Street, #14 Novato, CA 94945	Adult	Child; heir-at-law; successor trustee and beneficiary of Trust B under Declaration of Trust dated May 27, 1977 (devisee trust).
Pamela Gompertz Schmitz (identified in the Will as Pamela Morris Gompertz), deceased (DOD: 8/25/2023)	N/A	Grandchild (child of Charles B. Gompertz); Beneficiary of Trust B under Declaration of Trust dated May 27, 1977 (devisee trust).
Estate of Pamela Gompertz Schmitz c/o David Schmitz 16 Blackhawk Drive San Anselmo, CA 94960	Adult	Surviving spouse of Pamela Gompertz Schmitz (nominated personal representative, acting trustee and sole beneficiary of trust).
Margaret Gompertz Gilkey 930 George Street, #14 Novato, CA 94945	Adult	Grandchild (child of Charles B. Gompertz); beneficiary of Trust B under Declaration of Trust dated May 27, 1977 (devisee trust).
John Langdon Gompertz II 543 Tarragon Drive San Rafael, CA 94903	Adult	Grandchild (child of Charles B. Gompertz); beneficiary of Trust B under Declaration of Trust dated May 27, 1977 (devisee trust).

Ross Lee Gompertz P. O. Box 713 Nicasio, CA 94946	Adult	Grandchild (child of Charles B. Gompertz); Declaration of Trust dated May 27, 1977 (devisee trust).
David Chandler Melvin 7 Henley St. Drummoyne, NSW 2047 AUSTRALIA	Adult	Grandchild; mentioned in Will.
Lawrence Henry Melvin 5917 47 TH Ave. SW Seattle, WA 98136	Adult	Grandchild; mentioned in Will.
Christopher Frank Cooper 40 Monroe St. Honeoye Falls, NY 14472	Adult	Grandchild; mentioned in Will.
Daniel Cooper P. O. Box 555 Nicasio, CA 94946	Adult	Grandchild; mentioned in Will.
Marian Huntington (Formerly Marian Prentice Schinski) 7 Fabian Court Novato, CA 94947	Adult	Grandchild; mentioned in Will.
Elizabeth Gompertz Huntington (formerly Elizabeth Gompertz Dorward) 324 San Francisco Blvd. San Anselmo, CA 94960	Adult	Grandchild; mentioned in Will; attorney-in-fact for Margaret Gompertz Huntington
Julie Bates DePolo 1036 Lorraine Drive Napa, CA 94558	Adult	Grandchild; mentioned in Will.
John C. Rickson Aegis Living Moraga 950 Country Club Drive, #203 Moraga, CA 94556	Adult	Nominated executor (declining)
William C. Robbins III 207 Paradise Drive Tiburon, CA 94920	Adult	Nominated executor (declining)

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): Thomas B. Worth (SBN: 73232) Friedman McCubbin Law Group LLP 425 California St., 25th Fl. San Francisco, CA 94104 TELEPHONE NO.: 415-434-2226 FAX NO. (Optional): E-MAIL ADDRESS (Optional): tom@fomlaw.com ATTORNEY FOR (Name): 17th and Peralta, LLC, Petitioner	FOR COURT USE ONLY ELECTRONICALLY FILED Superior Court of California, County of Alameda 09/17/2025 at 10:22:48 AM By: Adeline Brophy, Deputy Clerk
SUPERIOR COURT OF CALIFORNIA, COUNTY OF ALAMEDA STREET ADDRESS: 2120 Martin Luther King Jr. Way MAILING ADDRESS: CITY AND ZIP CODE: Berkeley, CA 94704 BRANCH NAME:	
ESTATE OF (Name): JOHN L. GOMPERTZ DECEDENT	
NOTICE OF PETITION TO ADMINISTER ESTATE OF (Name): JOHN L. GOMPERTZ	CASE NUMBER: 25PR142709

1. To all heirs, beneficiaries, creditors, contingent creditors, and persons who may otherwise be interested in the will or estate, or both, of (specify all names by which the decedent was known):
JOHN L. GOMPERTZ
2. A **Petition for Probate** has been filed by (name of petitioner): 17th and Peralta, LLC
In the Superior Court of California, County of (specify): ALAMEDA
3. The Petition for Probate requests that (name): JOANNE GOMPERTZ MARTIN
be appointed as personal representative to administer the estate of the decedent.
4. ☒ The petition requests the decedent's will and codicils, if any, be admitted to probate. The will and any codicils are available for examination in the file kept by the court.
5. ☒ The petition requests authority to administer the estate under the Independent Administration of Estates Act. (This authority will allow the personal representative to take many actions without obtaining court approval. Before taking certain very important actions, however, the personal representative will be required to give notice to interested persons unless they have waived notice or consented to the proposed action.) The Independent administration authority will be granted unless an interested person files an objection to the petition and shows good cause why the court should not grant the authority.
6. A hearing on the petition will be held in this court as follows:

a. Date: 10/17/25	Time: 9:45 a.m.	Dept.: 202	Room:
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b. Address of court: ☒ same as noted above ☐ other (specify):
7. If you object to the granting of the petition, you should appear at the hearing and state your objections or file written objections with the court before the hearing. Your appearance may be in person or by your attorney.
8. If you are a creditor or a contingent creditor of the decedent, you must file your claim with the court and mail a copy to the personal representative appointed by the court within the later of either (1) **four months** from the date of first issuance of letters to a general personal representative, as defined in section 58(b) of the California Probate Code, or (2) **60 days** from the date of mailing or personal delivery to you of a notice under section 9052 of the California Probate Code.
Other California statutes and legal authority may affect your rights as a creditor. You may want to consult with an attorney knowledgeable in California law.
9. You may examine the file kept by the court. If you are a person interested in the estate, you may file with the court a Request for Special Notice (form DE-154) of the filing of an inventory and appraisal of estate assets or of any petition or account as provided in Probate Code section 1250. A Request for Special Notice form is available from the court clerk.
10. ☐ Petitioner ☒ Attorney for petitioner (name): Thomas B. Worth
 Friedman McCubbin Law Group LLP, 425 California St., 25th Fl.
 (Address): San Francisco, CA 94104
 (Telephone): 415-434-2226

NOTE: If this notice is published, print the caption, beginning with the words NOTICE OF PETITION TO ADMINISTER ESTATE, and do not print the information from the form above the caption. The caption and the decedent's name must be printed in at least 8-point type and the text in at least 7-point type. Print the case number as part of the caption. Print items preceded by a box only if the box is checked. Do not print the italicized instructions in parentheses, the paragraph numbers, the mailing information, or the material on page 2.

ESTATE OF (Name):
JOHN L. GOMPERTZ

CASE NUMBER:

DECEDENT

PROOF OF SERVICE BY MAIL

1. I am over the age of 18 and not a party to this cause. I am a resident of or employed in the county where the mailing occurred.
2. My residence or business address is (specify): 425 California St., 25th Fl.
San Francisco, CA 94104

3. I served the foregoing *Notice of Petition to Administer Estate* on each person named below by enclosing a copy in an envelope addressed as shown below **AND**

- a. ☐ **depositing** the sealed envelope with the United States Postal Service on the date and at the place shown in item 4, with the postage fully prepaid.
- b. ☒ **placing** the envelope for collection and mailing on the date and at the place shown in item 4 following our ordinary business practices. I am readily familiar with this business's practice for collecting and processing correspondence for mailing. On the same day that correspondence is placed for collection and mailing, it is deposited in the ordinary course of business with the United States Postal Service, in a sealed envelope with postage fully prepaid.

4. a. Date mailed: 9/17/25 b. Place mailed (city, state): San Francisco, CA

5. ☒ I served, with the *Notice of Petition to Administer Estate*, a copy of the petition or other document referred to in the notice.

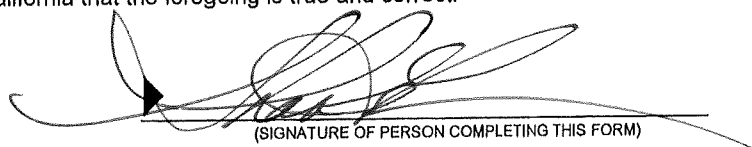
I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date:

9/17/25

Shannon Grasso

(TYPE OR PRINT NAME OF PERSON COMPLETING THIS FORM)



(SIGNATURE OF PERSON COMPLETING THIS FORM)

NAME AND ADDRESS OF EACH PERSON TO WHOM NOTICE WAS MAILED

Name of person served

Address (number, street, city, state, and zip code)

1. SEE ATTACHED	
2.	
3.	
4.	
5.	
6.	

☐ Continued on an attachment. (You may use form DE-121(MA) to show additional persons served.)

Assistive listening systems, computer-assisted real-time captioning, or sign language interpreter services are available upon request if at least 5 days notice is provided. Contact the clerk's office for *Request for Accommodations by Persons With Disabilities and Order* (form MC-410). (Civil Code section 54.8.)



SERVICE LIST

Estate of John L. Gompertz

Estate of Charles B. Gompertz c/o Leslie Ross Gompertz P. O. Box 713 Nicasio, CA 94946	Daniel Cooper P. O. Box 555 Nicasio, CA 94946
Leslie Ross Gompertz P. O. Box 713 Nicasio, CA 94946	Marian Huntington 7 Fabian Court Novato, CA 94947
Joanne Gompertz Martin 913 So. Eliseo Drive Greenbrae, CA 94904	Christopher Frank Cooper 40 Monroe St. Honeoye Falls, NY 14472
Margaret Gompertz Huntington 930 George Street, #14 Novato, CA 94945	Elizabeth Gompertz Huntington 324 San Francisco Blvd. San Anselmo, CA 94960
David Chandler Melvin 7 Henley St. Drummoyne, NSW 2047 AUSTRALIA	Julie Bates DePolo 1036 Lorraine Drive Napa, CA 94558
Estate of Pamela Gompertz Schmitz c/o David Schmitz 16 Blackhawk Drive San Anselmo, CA 94960	John C. Rickson Aegis Living Moraga 950 Country Club Drive, #203 Moraga, CA 94556
Margaret Gompertz Gilkey 930 George Street, #14 Novato, CA 94945	William C. Robbins III 207 Paradise Drive Tiburon, CA 94920
John Langdon Gompertz II 543 Tarragon Drive San Rafael, CA 94903	Lawrence Henry Melvin 5917 47 TH Ave. SW Seattle, WA 98136
Ross Lee Gompertz P. O. Box 713 Nicasio, CA 94946	

[] Ex Parte
Case Number: 25PR142709
Case Title: ESTATE OF: JOHN L GOMPERTZ
Petition: Petition for Probate of Will and for Letters of Administration with Will Annexed
Date Filed: 09/15/2025
Petitioner: 17th and Peralta LLC
Attorney for Petitioner: Thomas B. Worth
Hearing: 10/17/2025 9:45 AM

[] Objections COURT REVIEW: Petitioner 17th and Peralta LLC, an interested party, filed Petition for Probate of Will - Letters of Administration w/Will Annexed. Petition requests that Joanne Gompertz Martin, daughter of the decedent, be appointed as administrator w/will annexed.

NOTE: All procedural issues must be cleared by **12:00 p.m. two (2) court days prior to the hearing**, otherwise, the hearing may be dropped or continued at the Court's discretion.

You may NOT need to file an amended Petition to address the issues related to the Petition. Instead, a verified declaration (**MC-030**) may be used to address certain procedural issues related to the filings. If an Amended Petition or Amendment to the Petition is needed and filed, a new Notice of Hearing must be served and re-published, if applicable, pursuant to **California Rules of Court 7.53**.

If you need a one-time continuance, you may contact the courtroom:
Dept. 201: (510) 647-4470
Dept. 202: (510) 647-4471

VENUE

Issue #	Judge's Review	Procedural	No Issue	
	[]	[]	[X]	Domiciled at death in Alameda County? (PC 7051) If "No", decedent must have been a non-domiciliary of California who left assets in Alameda County. (7052) See Petition Items 3a and 3c. DOD: 11/14/04 (resided in Oakland, CA at the time of death)
Issue #	Judge's Review	Procedural	No Issue	
n/a	[]	[]	[]	Assets of non-domiciliary decedent in Alameda County? (PC 7052)

Only when witnessed Will/Codicil involved:

Issue #	Judge's Review	Procedural	No Issue
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1	☐	☒	☐	Original Will/Codicil in Court file? (PC 8200) 1. Original Will (dated 5/16/97) not on file. Please address. 2. First Codicil (dated 11/15/01) not on file. Please address.
Issue #	Judge's Review	Procedural	No Issue	
2	☐	☒	☐	Photographic copy of Will/Codicil attached to Petition? (Item 3f(2)); (PC 8002(b); LCR 7.150) 1. Per Petition, a First Codicil to Last Will and Testament dated 11/15/21 was attached to the Petition. However, no such document has been attached to the Petition. Please address.
Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☒	IAEA not precluded under Will/Codicil? (Item 4)
Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☒	Is Will/Codicil self-proving? (Item 3f(2)) (PC 8220(b)) If "No", Proof of one Subscribing Witness is needed. (Form DE-131)
Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☒	Proof of subscribing witness submitted?
Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☒	Is Will/Codicil appropriately executed under Probate Code §6110, et. seq.
Only when holographic Will/Codicil involved:				
Issue #	Judge's Review	Procedural	No Issue	
n/a	☐	☐	☐	Original Will/Codicil in Court file? (PC 8200)
Issue #	Judge's Review	Procedural	No Issue	
n/a	☐	☐	☐	Photographic copy of Will/Codicil attached to Petition? (Item 3f (2))
Issue #	Judge's Review	Procedural	No Issue	
n/a	☐	☐	☐	Typed copy of Will/Codicil attached to petition? (PC 8002(b))

Issue #	Judge's Review	Procedural	No Issue	
n/a	☐	☐	☐	Proof of Holographic Instrument filed? (Form DE-135)

Issue #	Judge's Review	Procedural	No Issue	
n/a	☐	☐	☐	Does Will/Codicil meet requirements of Probate Code §6111 for estates of decedents who died on or after January 1, 1985? [Former Probate Code §53 for pre-1985 deaths.]

Only when lost Will/Codicil involved:

Issue #	Judge's Review	Procedural	No Issue	
n/a	☐	☐	☐	Copy of Will/Codicil filed or written statement of the testamentary words or their substance? (PC 8223)

Issue #	Judge's Review	Procedural	No Issue	
n/a	☐	☐	☐	Sufficient proof of the existence of the Will/Codicil filed? (PC §6124)

Only when Will/Codicil is in a foreign language:

Issue #	Judge's Review	Procedural	No Issue	
n/a	☐	☐	☐	Certified English translation filed?

Only for ancillary proceedings (See PC 12500, et. seq.)

Issue #	Judge's Review	Procedural	No Issue	
n/a	☐	☐	☐	Will/codicil or authenticated copy filed? (PC 12521)

Issue #	Judge's Review	Procedural	No Issue	
n/a	☐	☐	☐	Authenticated copy of order admitting will to probate in sister state or foreign nation included? (PC 12521)

Only when no Personal Representative nominated in Will/Codicil (check one):

Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☒	No Executor named in Will/Codicil. Probate Code §8441/8461 for administrators with will annexed.

Issue #	Judge's Review	Procedural	No Issue	
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Review

☐☐☒

Executor named in Will/Codicil is deceased or declines to act. If so, appropriate explanation/written declination(s) filed?

[**See below-note re: testate.](#)

PETITION FOR PROBATE

Issue #	Judge's Review	Procedural	No Issue
	☐	☐	☐

Used current Judicial Council form? (DE-111; Rev. 7/1/2017)

Issue #	Judge's Review	Procedural	No Issue
3	☐	☒	☐

Intestate: Specify priority of petitioner to act (PC §8460, et. seq. for administrators)

[N/A](#)

Testate:

[1. Per the decedent's Will, the nominated executor\(s\) are as follows:](#)

[First Named Executor: Margaret B. Gompertz \(spouse; predeceased on 12/30/97\)](#)

[Second Named Executor: Charles Bates Gompertz \(son; post-deceased on 10/2/18\)](#)

[Third Named Executors: Leslie Ross Gompertz \(daughter-in-law\)](#)

[Attached to the Petition as Attachment 3g\(1\)\(d\) are two \(2\) Declinations to Act as Executor signed by the following:](#)

[a. John C. Ricksen](#)

[b. William C. Robbins III](#)

[Per Attachment, they were nominated as executors in the decedent's Codicil date 11/15/21.](#)

[Attached as Attachment 3f\(2\)\(b\) is a Nomination of Administrator w/Will Annexed signed by Margaret Gompertz \(aka Margaret Gompertz Merritts\), one of the decedent's daughters, who nominated Joanne Gompertz Martin to act as the personal representative of the decedent's estate.](#)

[Attached as Attachment 3f\(2\)\(b\) is a Consent to Act as Administrator signed by Joanne Gompertz Martin.](#)

[Please address the following:](#)

a. Since the First Codicil (dated 11/15/01) is not attached to this Petition, PE is unable to verify that John C. Rickson and William C. Robbins were nominated as executors. If unable to verify this information against the First Codicil, this would mean that Leslie Ross Gompertz, as the third-nominated executor listed in the decedent's Will, would be the next nominated executor of the decedent's estate. Please address.

Issue #	Judge's Review	Procedural	No Issue
	☐	☐	☒

Item 2c (IAEA authority) consistent with caption?
Full IAEA authority

Issue #	Judge's Review	Procedural	No Issue
4	☐	☒	☐

All portions of Petition complete and all questions answered appropriately? If "No", specify:
1. Per Petition, the decedent died in 2004. Please address the delay in filing this Petition for Probate.

Issue #	Judge's Review	Procedural	No Issue
5	☐	☒	☐

Item 8 complete? If "No", specify:
1. Per the decedent's Will, the following were listed:

- a. Charles Gompertz (son)
- b. Margaret Gompertz Merriitts (daughter)
- c. Joanne Gompertz Martin (daughter)
- d. Pamela Gompertz Schmitz (granddaughter)
- e. Margaret Gompertz Gilkey (granddaughter)
- f. John Langdon Gompertz II (grandson)
- g. Ross Lee Gompertz (grandson)
- h. David Chandler Melvin (grandson)
- i. Lawrence Henry Melvin (grandson)
- j. Christopher Frank Cooper (grandson)
- k. Daniel Cooper (grandson)
- l. Marian Prentice Schinski (granddaughter)
- m. Elizabeth Gompertz Dorward (granddaughter)
- n. Julie Bates DePolo (granddaughter)
- o. Margaret B. Gompertz (spouse)

Per item#8, Margaret B. Gompertz, Charles Bates Gompertz and Pamela Gompertz Schmitz are deceased. Please address the following:

a. Charles B. Gompertz - has a probate of his estate been opened? If yes, has a personal representative of his estate been appointed by the court? If yes, please list name and current address. Please address.

b. Pamela Gompertz Schmitz - has a probate of her estate been opened? If yes, has a personal representative of her estate been appointed by the court? If yes, please list name and current address. Please address.

c. Leslie Ross Gompertz - address is listed as a P.O. Box. Pursuant to PC 1215a(3), Notice shall be addressed to the person at their place of business or place of residence. Please address.

d. Ross Lee Gompertz - address is listed as a P.O. Box. Pursuant to PC 1215a(3), Notice shall be addressed to the person at their place of business

or place of residence. Please address.

e. Daniel Cooper - address is listed as a P.O. Box. Pursuant to PC 1215a(3), Notice shall be addressed to the person at their place of business or place of residence. Please address.

Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☒	Signature/Declaration complete? If "No", specify:
6	☐	☒	☐	"Duties and Liabilities of Personal Representative"? (Form DE-147). All personal representatives have executed the acknowledgment of receipt on page 2: Item #2 (address and phone number), printed name, signed, and dated? 1. Duties & Liabilities of PR (DE-147) not on file. Please address.

Bond (Items 2d & 3e) (PC 8481)

NOTES: Despite waivers, the Court may still require personal representative to post bond for "good cause" (PC 8481; CRC 7.201(b)). The minimum bond the court requires is \$20,000.

The Court may require bond if petitioner is a non-resident of California (PC 8571; CRC 7.201(b); LCR 7.175).

Full IAEA authority = estimated value of real and personal property plus probable annual gross income of estate:

\$160,000.00

Limited IAEA authority = estimate value of personal property and probable annual gross income of the estate without value of real property:

Issue #	Judge's Review	Procedural	No Issue	
7	☐	☒	☐	No Bond because: 1. Item#3e(2) is marked re: "All beneficiaries have filed written waivers and Will does not require bond." Please address the following: a. There are no Waiver(s) of Bond (DE-142) either attached to this Petition or filed separately. Please address. b. Will waives bond as to named executors only. Please address.

Issue #	Judge's Review	Procedural	No Issue	
8	☐	☒	☐	Bond may be required because: 1. See above-note. Please address.

SERVICE OF NOTICE

Issue #	Judge's	Procedural	No Issue
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	Review []	[]	[X]	Used "Notice of Petition to Administer Estate"? (Form DE-121)
Issue #	Judge's Review []	Procedural []	No Issue [X]	Request for IAEA served in notices?
Issue #	Judge's Review []	Procedural []	No Issue [X]	Served Notice (Petition not required) by mail or by personal delivery at least 15 days prior to hearing date? (PC 8110) 9/17/25
Issue # 9	Judge's Review []	Procedural [X]	No Issue []	Persons served included all beneficiaries and executors named in Will/Codicils and all heirs so far as known or reasonably ascertainable? If "No", specify who was omitted: 1. See above-note re: PC 1215a(3)/P.O. box listed for Leslie Ross Gompertz, Ross Lee Gompertz and Daniel Cooper. Please address.

NOTE:

*Certain charitable gifts require notice and copy of petition to be sent to Attorney General (PC 8111).

*If decedent was a citizen of a foreign country, or if a beneficiary is a citizen of a foreign country, see PC 8113. If beneficiary is resident but not a citizen of foreign country, need declaration regarding citizenship status of beneficiary.

Issue #	Judge's Review []	Procedural []	No Issue [X]	Proof of Service on reverse side of Notice complete? If "No", specify what was omitted:
Issue #	Judge's Review []	Procedural []	No Issue [X]	Service of the Notice otherwise free of defects/problems? If "No", specify:

PUBLICATION OF NOTICE:

Issue #	Judge's Review []	Procedural [X]	No Issue []	Affidavit showing due publication filed with the Court? (PC 8124) 1. Proof of publication not on file. Please address.
Issue #	Judge's Review []	Procedural []	No Issue []	Request for IAEA authority published? (PC 8121; PC

10451)

Issue #	Judge's Review	Procedural	No Issue
	☐	☐	☐

Publication in proper format?

Issue #	Judge's Review	Procedural	No Issue
	☐	☐	☐

Published in newspaper of general circulation in City, County, or State pursuant to Probate Code §8121?

Issue #	Judge's Review	Procedural	No Issue
	☐	☐	☐

Timing: 3 publications, with first publication at least 15 days prior to hearing, and at least 5 days intervening between the first and third publication dates, not counting the publication dates? (PC 8121)

ORDER

Issue #	Judge's Review	Procedural	No Issue
11	☐	☒	☐

Proposed order included? (Form DE-140)
[1. Proposed Order not on file. Please address.](#)

Issue #	Judge's Review	Procedural	No Issue
	☐	☐	☐

Proposed order complete and conforming to petition? If "No", specify:

NOTE: If lost Will/Codicil is proved, the provisions must be set forth at length in the order admitting the Will/Codicil to probate (PC 8223)

NOTE:**California Rule of Court 7.53****(a) An Amended pleading or an amendment to a pleading requires the same notice of hearing (including publication) as the pleading it amends.****(b) A supplement to a pleading does not require additional notice of hearing, but a copy of the supplement to a pleading must be served if service of a copy of the pleading was required, unless waived by the court.**

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): Thomas B. Worth (SBN: 73232) Friedman McCubbin Law Group LLP 425 California St., 25th Fl. San Francisco, CA 94104 TELEPHONE NO.: 415-434-2226 FAX NO. (Optional): E-MAIL ADDRESS (Optional): tom@fomlaw.com ATTORNEY FOR (Name): 17th and Peralta, LLC, Petitioner SUPERIOR COURT OF CALIFORNIA, COUNTY OF ALAMEDA STREET ADDRESS: 2120 Martin Luther King Jr. Way MAILING ADDRESS: CITY AND ZIP CODE: Berkeley, CA 94704 BRANCH NAME:	FOR COURT USE ONLY ELECTRONICALLY FILED Superior Court of California, County of Alameda 09/23/2025 at 11:12:06 AM By: Cheryl Sugarbaker, Deputy Clerk
ESTATE OF (Name): JOHN L. GOMPERTZ DECEDENT	
DUTIES AND LIABILITIES OF PERSONAL REPRESENTATIVE and Acknowledgment of Receipt	CASE NUMBER: 25PR142709

DUTIES AND LIABILITIES OF PERSONAL REPRESENTATIVE

When the court appoints you as personal representative of an estate, you become an officer of the court and assume certain duties and obligations. An attorney is best qualified to advise you about these matters. You should understand the following:

1. MANAGING THE ESTATE'S ASSETS

a. Prudent investments

You must manage the estate assets with the care of a prudent person dealing with someone else's property. This means that you must be cautious and may not make any speculative investments.

b. Keep estate assets separate

You must keep the money and property in this estate separate from anyone else's, including your own. When you open a bank account for the estate, the account name must indicate that it is an estate account and not your personal account. Never deposit estate funds in your personal account or otherwise mix them with your or anyone else's property. Securities in the estate must also be held in a name that shows they are estate property and not your personal property.

c. Interest-bearing accounts and other investments

Except for checking accounts intended for ordinary administration expenses, estate accounts must earn interest. You may deposit estate funds in insured accounts in financial institutions, but you should consult with an attorney before making other kinds of investments.

d. Other restrictions

There are many other restrictions on your authority to deal with estate property. You should not spend any of the estate's money unless you have received permission from the court or have been advised to do so by an attorney. You may reimburse yourself for official court costs paid by you to the county clerk and for the premium on your bond. Without prior order of the court, you may not pay fees to yourself or to your attorney, if you have one. If you do not obtain the court's permission when it is required, you may be removed as personal representative or you may be required to reimburse the estate from your own personal funds, or both. You should consult with an attorney concerning the legal requirements affecting sales, leases, mortgages, and investments of estate property.

2. INVENTORY OF ESTATE PROPERTY

a. Locate the estate's property

You must attempt to locate and take possession of all the decedent's property to be administered in the estate.

b. Determine the value of the property

You must arrange to have a court-appointed referee determine the value of the property unless the appointment is waived by the court. You, rather than the referee, must determine the value of certain "cash items." An attorney can advise you about how to do this.

c. File an inventory and appraisal

Within four months after Letters are first issued to you as personal representative, you must file with the court an inventory and appraisal of all the assets in the estate.

ESTATE OF (Name):
JOHN L. GOMPERTZ

CASE NUMBER:
25PR142709

DECEDENT

d. File a change of ownership

At the time you file the inventory and appraisal, you must also file a change of ownership statement with the county recorder or assessor in each county where the decedent owned real property at the time of death, as provided in section 480 of the California Revenue and Taxation Code.

3. NOTICE TO CREDITORS

You must mail a notice of administration to each known creditor of the decedent within four months after your appointment as personal representative. If the decedent received Medi-Cal assistance, you must notify the State Director of Health Services within 90 days after appointment.

4. INSURANCE

You should determine that there is appropriate and adequate insurance covering the assets and risks of the estate. Maintain the insurance in force during the entire period of the administration.

5. RECORD KEEPING

a. Keep accounts

You must keep complete and accurate records of each financial transaction affecting the estate. You will have to prepare an account of all money and property you have received, what you have spent, and the date of each transaction. You must describe in detail what you have left after the payment of expenses.

b. Court review

Your account will be reviewed by the court. Save your receipts because the court may ask to review them. If you do not file your accounts as required, the court will order you to do so. You may be removed as personal representative if you fail to comply.

6. CONSULTING AN ATTORNEY

If you have an attorney, you should cooperate with the attorney at all times. You and your attorney are responsible for completing the estate administration as promptly as possible. **When in doubt, contact your attorney.**

NOTICE: 1. This statement of duties and liabilities is a summary and is not a complete statement of the law. Your conduct as a personal representative is governed by the law itself and not by this summary.
2. If you fail to perform your duties or to meet the deadlines, the court may reduce your compensation, remove you from office, and impose other sanctions.

ACKNOWLEDGMENT OF RECEIPT

1. I have petitioned the court to be appointed as a personal representative.
2. My address and telephone number are (*specify*):
913 So. Eliseo Drive
Greenbrae, CA 94904 (415) 385-8644
3. I acknowledge that I have received a copy of this statement of the duties and liabilities of the office of personal representative.

Date: Sept 17, 2025

Joanne Gompertz Martin

(TYPE OR PRINT NAME)

▶ Joanne Gompertz Martin
(SIGNATURE OF PETITIONER)

Date: _____

(TYPE OR PRINT NAME)

▶ _____
(SIGNATURE OF PETITIONER)

CONFIDENTIAL INFORMATION: If required to do so by local court rule, you must provide your date of birth and driver's license number on supplemental Form DE-147S. (Prob. Code, § 8404(b).)

1. Date of hearing: October 17, 2025 Time: 9:45 a.m. Dept./Room: 202 Judge: Barbara Dickinson

2. a. All notices required by law have been given.
b. Decedent died on (date): 11/14/2004
(1) ☒ a resident of the California county named above.
(2) ☐ a nonresident of California and left an estate in the county named above.

and decedent's will dated: May 16, 1997 and each codicil dated: November 15, 2001
was admitted to probate by Minute Order on (date): October 17, 2025

3. (Name): Joanne Gompertz Martin
is appointed **personal representative**:

a. ☐ executor of the decedent's will

b. ☒ administrator with will annexed

c. ☐ administrator

d. ☐ special administrator

(1) ☐ with general powers

(2) ☐ with special powers as specified in Attachment 3d(2)

(3) ☐ without notice of hearing

(4) ☐ letters will expire on *(date)*:

and letters shall issue on qualification.

4. a. ☒ **Full authority** is granted to administer the estate under the Independent Administration of Estates Act.
- b. ☐ **Limited authority** is granted to administer the estate under the Independent Administration of Estates Act (there is no authority, without court supervision, to (1) sell or exchange real property or (2) grant an option to purchase real property or (3) borrow money with the loan secured by an encumbrance upon real property).

5. a. ☒ Bond is not required.
- b. ☐ Bond is fixed at: \$ _____ to be furnished by an authorized surety company or as otherwise provided by law.
- c. ☐ Deposits of: \$ _____ are ordered to be placed in a blocked account at *(specify institution and location)*: _____ and receipts shall be filed. No withdrawals shall be made without a court order. ☐ Additional orders in Attachment 5c.
- d. ☐ The personal representative is not authorized to take possession of money or any other property without a specific court order.

6. ☒ (Name): Lonnie S. Dillard
1200 Park Boulevard PMB 538 is appointed panel referee.

Date: 10/17/2025

7. Number of pages attached: Phone (510) 482-5247

Lonnie S. Dillard
4200 Park Boulevard PMB 538
Oakland, CA 94602
Phone (510) 482-5247

JUDGE OF THE SUPERIOR COURT
☐ SIGNATURE FOLLOWS LAST ATTACHMENT

Barbara Dickinson / Judge

ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO.: 73232 NAME: Thomas B. Worth FIRM NAME: Friedman McCubbin Law Group LLP STREET ADDRESS: 425 California Street, 25th Fl. CITY: San Francisco STATE: CA ZIP CODE: 94104 TELEPHONE NO.: 415-434-2226 FAX NO.: E-MAIL ADDRESS: tom@fomlaw.com ATTORNEY FOR (name): 17th and Peralta, LLC, Petitioner	FOR COURT USE ONLY ELECTRONICALLY FILED Superior Court of California, County of Alameda 09/23/2025 at 11:12:06 AM By: Cheryl Sugarbaker, Deputy Clerk
SUPERIOR COURT OF CALIFORNIA, COUNTY OF ALAMEDA STREET ADDRESS: 2120 Martin Luther King Jr. Way MAILING ADDRESS: CITY AND ZIP CODE: Berkeley, CA 94704 BRANCH NAME:	
ESTATE OF (Name): JOHN L. GOMPERTZ , DECEDENT	
WAIVER OF BOND BY HEIR OR BENEFICIARY ☒ Attachment 3e to <i>Petition for Probate</i> *	CASE NUMBER: 25PR142709

NOTICE: READ PARAGRAPHS A–G BEFORE YOU SIGN

- A. A bond is a form of insurance to replace assets that may be mismanaged or stolen by the executor or administrator (the estate's **personal representative**). The cost of the bond is paid from the assets of the estate.
- B. A bond may not be required if the decedent's will admitted to probate waives a bond and the court approves.
- C. If the decedent's will does not waive bond, or if the decedent died without a will, the law ordinarily requires the personal representative to give a bond approved and ordered by the court. However, all persons eligible to receive a share of the estate may waive the requirement of a bond. If they all waive bond and the court approves, the personal representative will NOT have to give a bond.
- D. If bond is not ordered by the court, and the estate suffers loss because the personal representative fails to properly perform the duties of the office, the loss or some part of it may not be recoverable from the personal representative. If so, your share of the estate may be partly or entirely lost.
- E. You may waive the requirement of a bond by signing this form and delivering it to the petitioner for appointment of a personal representative or to the petitioner's attorney. Your waiver cannot be withdrawn after the court appoints the personal representative without requiring a bond. However, if you sign a waiver of bond, you may later petition the court to require a bond.
- F. A guardian ad litem or other legal representative with specific authority under law to waive bond must sign for a minor, an incapacitated person, an unascertained beneficiary, or a designated class of persons who are not ascertained or not yet in being. See Judicial Council forms DE-350 and DE-351 and Probate Code section 1003.
- G. If you do not understand this form, do not sign it until you have asked a lawyer (who is independent of the lawyer for the proposed personal representative) to explain it to you.

WAIVER

1. I have read and understand paragraphs A through G above.
2. I understand that before signing this form, I am free to consult with a lawyer of my choice concerning the possible consequences to me of waiving bond.
3. I understand that I do not have to waive bond to allow the estate administration to begin or proceed, or to receive my share of the estate.
4. I **WAIVE** the posting of bond in this estate by (name of personal representative): **Joanne Gompertz Martin**

Date: Sept. 17, 2025

JOANNE GOMPERTZ MARTIN

(TYPE OR PRINT NAME OF BENEFICIARY (AND AUTHORIZED
SIGNER, IF BENEFICIARY IS NOT AN INDIVIDUAL))

▶ Joanne Gompertz Martin
(SIGNATURE)

*(This form may be filed as an independent form (as form DE-142) OR
as Attachment 3e(2) (will) or Attachment 3e(3) (Intestacy) to the Petition for Probate (form DE-111) (as form DE-111(A-3e).)

ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO.: 73232 NAME: Thomas B. Worth FIRM NAME: Friedman McCubbin Law Group LLP STREET ADDRESS: 425 California Street, 25th Fl. CITY: San Francisco STATE: CA ZIP CODE: 94104 TELEPHONE NO.: 415-434-2226 FAX NO.: E-MAIL ADDRESS: tom@fomlaw.com ATTORNEY FOR (name): 17th and Peralta, LLC, Petitioner		FOR COURT USE ONLY ELECTRONICALLY FILED Superior Court of California County of Alameda 09/23/2025 Chad Finke, Executive Officer / Clerk of the Court By: <u>A. Brophy</u> , Deputy
SUPERIOR COURT OF CALIFORNIA, COUNTY OF ALAMEDA STREET ADDRESS: 2120 Martin Luther King Jr. Way MAILING ADDRESS: CITY AND ZIP CODE: Berkeley, CA 94704 BRANCH NAME:		
ESTATE OF (Name): JOHN L. GOMPERTZ , DECEDENT		
WAIVER OF BOND BY HEIR OR BENEFICIARY ☒ Attachment 3e to <i>Petition for Probate*</i>		CASE NUMBER: 25PR142709

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- I WAIVE the posting of bond in this estate by (name of personal representative): Joanne Gompertz Martin

Date: 9/17/2025

LESLIE ROSS GOMPERTZ on behalf of ESTATE OF
CHARLES B. GOMPERTZ

(TYPE OR PRINT NAME OF BENEFICIARY (AND AUTHORIZED
 SIGNER, IF BENEFICIARY IS NOT AN INDIVIDUAL))


 (SIGNATURE)

*(This form may be filed as an independent form (as form DE-142) OR
 as Attachment 3e(2) (will) or Attachment 3e(3) (intestacy) to the Petition for Probate (form DE-111) (as form DE-111(A-3e).)

ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO.: 73232 NAME: Thomas B. Worth FIRM NAME: Friedman McCubbin Law Group LLP STREET ADDRESS: 425 California Street, 25th Fl. CITY: San Francisco STATE: CA ZIP CODE: 94104 TELEPHONE NO.: 415-434-2226 FAX NO.: E-MAIL ADDRESS: tom@fomlaw.com ATTORNEY FOR (name): 17th and Peralta, LLC, Petitioner		FOR COURT USE ONLY ELECTRONICALLY FILED Superior Court of California, County of Alameda 09/23/2025 at 04:27:18 PM By: Adeline Brophy, Deputy Clerk
SUPERIOR COURT OF CALIFORNIA, COUNTY OF ALAMEDA STREET ADDRESS: 2120 Martin Luther King Jr. Way MAILING ADDRESS: CITY AND ZIP CODE: Berkeley, CA 94704 BRANCH NAME:		
ESTATE OF (Name): JOHN L. GOMPERTZ , DECEDENT		
WAIVER OF BOND BY HEIR OR BENEFICIARY ☒ Attachment 3e to <i>Petition for Probate</i> *		CASE NUMBER: 25PR142709

NOTICE: READ PARAGRAPHS A–G BEFORE YOU SIGN

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- F. A guardian ad litem or other legal representative with specific authority under law to waive bond must sign for a minor, an incapacitated person, an unascertained beneficiary, or a designated class of persons who are not ascertained or not yet in being. See Judicial Council forms DE-350 and DE-351 and Probate Code section 1003.
- G. If you do not understand this form, do not sign it until you have asked a lawyer (who is independent of the lawyer for the proposed personal representative) to explain it to you.

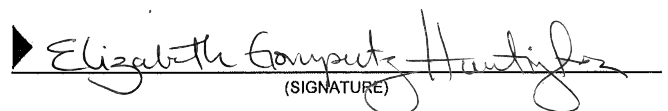
WAIVER

- I have read and understand paragraphs A through G above.
- I understand that before signing this form, I am free to consult with a lawyer of my choice concerning the possible consequences to me of waiving bond.
- I understand that I do not have to waive bond to allow the estate administration to begin or proceed, or to receive my share of the estate.
- I WAIVE the posting of bond in this estate by (name of personal representative): **Joanne Gompertz Martin**

Date: September 17, 2025

 MARGARET GOMPERTZ by ELIZABETH GOMPERTZ
 HUNTINGTON, Attorney-in-Fact

 (TYPE OR PRINT NAME OF BENEFICIARY (AND AUTHORIZED
 SIGNER, IF BENEFICIARY IS NOT AN INDIVIDUAL))


 (SIGNATURE)

*(This form may be filed as an independent form (as form DE-142) OR
 as Attachment 3e(2) (will) or Attachment 3e(3) (Intestacy) to the Petition for Probate (form DE-111) (as form DE-111(A-3e).)

Will of:	Gompertz	John	L.
	Last	First	Middle

LAST WILL AND TESTAMENT

OF

JOHN L. GOMPERTZ

I, JOHN L. GOMPERTZ, make, publish and declare this my Last Will and Testament in the manner following:

I.

REVOCATION OF PRIOR TESTAMENTARY INSTRUMENTS: I revoke all testamentary instruments heretofore made by me.

II.

FAMILY STATUS: I am married to MARGARET B. GOMPERTZ ("my spouse"). I have three adult children, to wit: CHARLES BATES GOMPERTZ, MARGARET GOMPERTZ MERRITTS and JOANNE GOMPERTZ MARTIN. I have eleven grandchildren, to wit: PAMELA GOMPERTZ SCHMITZ, MARGARET GOMPERTZ GILKEY, JOHN LANGDON GOMPERTZ II, ROSS LEE GOMPERTZ, DAVID CHANDLER MELVIN, LAWRENCE HENRY MELVIN, CHRISTOPHER FRANK COOPER, DANIEL COOPER, MARIAN PRENTICE SCHINSKI, ELIZABETH GOMPERTZ DORWARD and JULIE BATES DePOLO.

I have no other children or issue of deceased children.

III.

NOMINATION AND POWERS OF EXECUTOR:

A. I nominate the following persons in the order named to serve as Executor of this Will:

1. MARGARET B. GOMPERTZ
2. CHARLES BATES GOMPERTZ
3. LESLIE ROSS GOMPERTZ

My Executor shall serve without bond.

B. I grant my Executor the following powers:

1. Exchange, Sell or Lease: To exchange, sell or lease any property of my estate, with or without notice, at public or private sale, subject only to such confirmation as may be required by law; without in any way limiting the foregoing, I specifically authorize my Executor to sell assets to the Trustee of the Trust Agreement identified in this Will;
2. Borrow and Encumber. To borrow money from any source, including the Trustee of the Trust Agreement identified in this Will, and to encumber or hypothecate by mortgage, deed of trust, pledge or otherwise all or any portion of my estate;
3. Invest and Reinvest: To invest and reinvest any surplus monies at any time forming part of my estate in every kind of property, real, personal, or mixed, and every kind of investment, specifically including, but not limited to, improved and unimproved real property, interest-bearing accounts, corporate and government obligations of every kind, preferred or common stocks, shares of investment trusts, investment companies and mutual funds and stocks, obligations and shares or units of common trust funds of any corporate fiduciary, in which persons of prudence, discretion and intelligence would invest in the management of their own affairs. My Executor shall not be liable for failure to invest as provided herein;
4. Divide and Distribute: To partition, allot and distribute any property in my estate, which is not specifically bequeathed or devised, on any preliminary or

final distribution, pro rata or otherwise, in cash or kind, including undivided interests in my estate or any part of it, or partly in cash and partly in kind, in my Executor's absolute discretion;

5. Nominate Executor: Except as otherwise provided in Paragraph A of this Article, to nominate any other person or entity co-executor, a successor executor or an ancillary executor, without bond or other security, and any executor so appointed shall have all the rights and duties given to my Executor under this Will;

6. Make Tax Decisions: I authorize my Executor to make the following choices or elections in my Executor's absolute discretion, regardless of the resulting effect on any other provisions of this Will or on any person interested in my estate or in the amount of any of the taxes referred to:

Choose a valuation date for estate tax purposes and choose the methods to pay estate or inheritance taxes;

Elect to treat or use an item, for either federal or state tax purposes, either as an income tax deduction or as a death tax deduction;

Determine when a particular item is to be treated as taken into income or used as a tax deduction, to the extent the law provides that choice;

Disclaim all or any portion of any interest in property passing to my estate at or after my death;

Join with my spouse or my spouse's estate in filing joint income or gift tax returns for any years for which I have not filed returns before my death and consent to any gifts made by my spouse as being made one-half by me for gift tax purposes, even though any of these actions may subject my estate to additional tax liabilities.

Provided, further, that no person adversely affected by any of these choices is entitled to any reimbursement or adjustment and my Executor is not required to make any adjustment between income and principal or in the amount of any property passing under this Will as a result of any election under this provision.

7. Power to Pay Bequests for Benefit of Minors or Incompetents: If at the date of distribution of any property from my estate, the beneficiary of the

property under my Will is a minor, or under any other legal disability, or unable, in my Executor's opinion, to administer the property properly by reason of mental or physical illness or disability, my Executor is empowered to distribute the property, in my Executor's sole discretion, to, including but not limited to, any one or more of the following persons for the benefit of the beneficiary (a) a legally appointed guardian or conservator of the estate of the beneficiary; or (b) a person holding a Durable Power of Attorney; or (c) if the beneficiary is a minor, his or her parent or custodian under any applicable Uniform Gifts to Minors Act; provided that if no custodian is then in existence, my Executor is empowered to designate a custodian for this purpose from among those persons qualified to serve. I authorize my Executor to accept the receipt of any distributee in full satisfaction and discharge of the distribution of such property;

8. Independent Administration of Estates Act. My Executor may administer my estate under the California Independent Administration of Estates Act with full powers.

IV.

DISPOSITION OF ESTATE:

A. I give my entire estate, IN TRUST, to the Trustee or Trustees then in office under the Declaration of Trust dated May 27, 1977, as amended and restated, signed and executed by JOHN L. GOMPERTZ and MARGARET B. GOMPERTZ as Trustors and JOHN L. GOMPERTZ and MARGARET B. GOMPERTZ as trustee, to hold, administer and distribute as provided in that Trust Agreement including any amendments made to it before my death.

B. If for any reason the disposition under paragraph A above of this Article is inoperative or invalid, or if the Declaration of Trust dated May 27, 1977, as amended and restated, has been revoked, I give my entire estate, IN TRUST, to the trustee or trustees designated in that Trust Agreement as trustee or trustees of a testamentary trust to hold,

administer and distribute as provided in the current provisions of that Trust Agreement, which, for such purpose, I incorporate by reference into this Will.

V.

GENERAL WILL PROVISIONS:

A. If any provision of this Will is unenforceable, the remaining provisions shall be carried into effect.

B. Headings are inserted in this Will for convenience of reference only and shall not be used to interpret or construe its provisions.

C. Except as otherwise provided in this Will, I intentionally and with full knowledge of the consequences have omitted to provide in this Will for any of my heirs living at the date of my death.

D. If any beneficiary under this Will in any manner, directly or indirectly, either in his or her name or in the name of another, contests, controverts, attacks or disputes the validity of this Will or any provision contained herein, any share or interest in my estate given to that contesting beneficiary under this Will is revoked and shall be disposed of in the same manner provided herein as if that contesting beneficiary had predeceased me without leaving issue.

I subscribe my name to this Will this 16th day of May
_____ 1997, at Oakland, California.

John L. Gompertz
JOHN L. GOMPERTZ

Witnesses:

John Jackson

Pamala Martin

On the date written below, JOHN L. GOMPERTZ declared to us, the undersigned, that this instrument consisting of seven (7) pages, including this page, was his Will, and he requested us to act as witnesses to it. He thereupon signed this Will in our presence, all of us being present at the same time. We now at his request, in his presence and in the presence of each other subscribe our names as witnesses, and each of us knows that each signature is the true signature of the person who signed.

We are acquainted with JOHN L. GOMPERTZ. At this time he is over the age of eighteen (18) years and, to the best of our knowledge, is of sound mind and not acting under duress, menace, fraud or undue influence.

Each of us is over eighteen (18) years of age, is a competent witness and resides at the address set forth after his or her name. We declare under penalty of perjury that the foregoing is true and correct.

Executed this 16 day of May, 1997, at Dakland, California.

John Crickren
(Signature)

JOHN CRICKREN
(Printed Name and Address)

77 J HARRIS AVE
PICKMONT, CALIF

Pamala J Martin
(Signature)

Pamala J Martin
(Printed Name and Address)

3228 Garfield
Alameda CA

SUPERIOR COURT OF CALIFORNIA, COUNTY OF ALAMEDA
Probate Clerk's Office
Berkeley Courthouse • 2120 Martin Luther King, Jr. Way, Berkeley, CA 94704

**FIRST CODICIL TO
LAST WILL AND TESTAMENT
OF
JOHN L. GOMPERTZ**

I, JOHN L. GOMPERTZ make, publish and declare this to be a First Codicil to my Last Will and Testament dated May 16, 1997, in the manner following:

FIRST: Article III, paragraph A. is amended, to read as follows:

1. JOHN C. RICKSEN
2. WILLIAM C. ROBBINS III

My executor shall serve without bond.

Any Trustee while in office, and if legally capable, may appoint a successor Trustee, which Trustee must not be a related or subordinate party who is subservient to the wishes of the individual appointing him, to act in the event such Trustee fails to qualify or is unable to act (by reason of physical or mental disability) or ceases to act as Trustee. Any successor Trustee while in office shall have the similar power to appoint a successor independent Trustee.

The word "disability" shall include any physical or mental condition that renders a person unable to conduct his or her regular affairs. Such a condition of disability shall be evidenced by the written certificate or statement of the disabled person's regularly attending physician filed with and accepted by the successor Trustee.

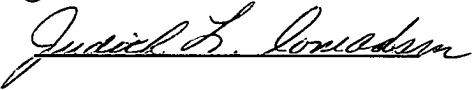
SECOND: In all other respects, I republish, ratify and confirm said Will

dated May 16, 1997.

IN WITNESS WHEREOF, I have hereunto set my hand this 15 day of
November, 2001.


JOHN L. GOMPERTZ

Witnesses:

On the date written below, JOHN L. GOMPERTZ declared to us, the undersigned, that this instrument consisting of three (3) pages, including this page, was the First Codicil to his Will, and he requested us to act as witnesses to it. JOHN L. GOMPERTZ thereupon signed this First Codicil in our presence, all of such being present at the same time. We now at his request, in his presence and in the presence of each other subscribed our names as witnesses, and each of us knows that each signature is the true signature of the person who signed.

We are acquainted with JOHN L. GOMPERTZ. At this time he is over the age of eighteen (18) years and, to the best of our knowledge, is of sound mind and not acting under duress, menace, fraud or undue influence.

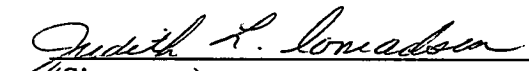
Each of us is over eighteen (18) years of age, is a competent witness and resides at the address set forth after his or her name. We declare under penalty of perjury that the foregoing is true and correct.

Executed this 15 day of November, 2001, at Oakland, California.


(Signature)

JOHN L. GOMPERTZ
(Printed Name and Address)

775 HARRIS AVE
PIEDMONT, CALIF


(Signature)

Judith L. Connadson
(Printed Name and Address)

1032 El Pueblo Blvd.
Walnut Creek, Ca

SUPERIOR COURT OF CALIFORNIA COUNTY OF ALAMEDA

COURTHOUSE ADDRESS:

Berkeley Courthouse

2120 Martin Luther King, Jr. Way, Berkeley, CA 94704

CASE TITLE:

ESTATE OF: JOHN L GOMPERTZ

NOTICE OF REJECTION - Letters**CASE NUMBER**

25PR142709

Your submission cannot be processed for the following reason(s):

- ☐ 1. Incorrect Case Number/Please Provide Case Number.
- ☐ 2. \$435.00 fee due for filing of Petition, Joint Petition, or First Appearance fee.
- ☐ 3. \$90.00 (\$60/motion + \$30/reporter) fee(s) due for Motion.
- ☐ 4. \$115 (\$60/motion + \$30 reporter fee + \$25/Modification) fee(s) due for Motion re: Modification of Child Visitation or Custody Orders.
- ☐ 5. \$20.00 fee due for Stipulation and Order or Continuance.
- ☐ 6. \$15.00 plus \$0.50 per page fee due for certified copy of Dissolution (Judgment).
- ☐ 7. \$0.50/page fee due for copying.
- ☐ 8. \$40 fee due for a certification of a document other than a Judgment of Dissolution.
- ☐ 9. Only one case number can be put on your document. If one is the lead case, please indicate which one. For return of copies, please provide Self-addressed stamped envelope.
- ☐ 10. Original plus two (2) copies are needed.
- ☐ 11. Form(s) not completed or submitted properly. Please seek legal assistance.
- ☐ 12. Original Signature(s) Required.
- ☐ 13. ☐ Fee Waiver incomplete ☐ Fee Waiver has expired
- ☐ 14. Not in Compliance with CRC 2.111 Format of First Page
- ☐ 15. Not in Compliance with CRC 2.113 Binding
- ☒ 16. Other: The Probate Clerk's Office does not retain Letters. Once the Order Appointing has been signed and the image is available, please resubmit the Letter for filing.
Next Hearing: October 17, 2025, at 9:45 AM

Please return this correspondence with your resubmission.

Chad Finke, Executive Officer / Clerk of the Court



Date: 09/25/2025

By:

A. Brophy, Deputy Clerk

SUPERIOR COURT OF CALIFORNIA COUNTY OF ALAMEDA		Reserved for Clerk's File Stamp
COURTHOUSE ADDRESS: Berkeley Courthouse 2120 Martin Luther King, Jr. Way, Berkeley, CA 94704		FILED Superior Court of California County of Alameda 09/25/2025 Chad Finke, Executive Officer / Clerk of the Court By: <u>Chad Finke</u> Deputy A. Brophy
PLAINTIFF/PETITIONER: 17th and Peralta LLC		
DEFENDANT/RESPONDENT:		
CERTIFICATE OF MAILING		CASE NUMBER: 25PR142709

I, the below-named Executive Officer/Clerk of the above-entitled court, do hereby certify that I am not a party to the cause herein, and that on this date I served the attached document upon each party or counsel named below by placing the document for collection and mailing so as to cause it to be deposited in the United States mail at the courthouse in Berkeley, California, one copy of the original filed/entered herein in a separate sealed envelope to each address as shown below with the postage thereon fully prepaid, in accordance with standard court practices.

Thomas B. Worth
Friedman McCubbin Law Group LLP
425 California Street 25th Floor
San Francisco, CA 94104

Chad Finke, Executive Officer / Clerk of the Court

Dated: 09/25/2025

By:

Chad Finke

A. Brophy, Deputy Clerk

CERTIFICATE OF MAILING

[] Ex Parte
Case Number: 25PR142709
Case Title: ESTATE OF: JOHN L GOMPERTZ
Petition: Petition for Probate of Will and for Letters of Administration with Will Annexed (updated)
Date Filed: 09/15/2025
Petitioner: 17th and Peralta LLC
Attorney for Petitioner: Thomas B. Worth
Hearing: 10/17/2025 9:45 AM

[] Objections [UPDATED NOTES: 10/3/25](#)

[COURT REVIEW: Petitioner 17th and Peralta LLC, an interested party, filed Petition for Probate of Will - Letters of Administration w/Will Annexed. Petition requests that Joanne Gompertz Martin, daughter of the decedent, be appointed as administrator w/will annexed.](#)

[NOTE: All procedural issues must be cleared *prior to the hearing*, otherwise, the hearing may be dropped or continued at the Court's discretion.](#)

[You may NOT need to file an amended Petition to address the issues related to the Petition. Instead, a verified declaration \(*MC-030*\) may be used to address certain procedural issues related to the filings. If an Amended Petition or Amendment to the Petition is needed and filed, a new Notice of Hearing must be served and re-published, if applicable, pursuant to *California Rules of Court 7.53*.](#)

[If you need a one-time continuance, you may contact the courtroom:
Dept. 201: \(510\) 647-4470
Dept. 202: \(510\) 647-4471](#)

VENUE

Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☒	Domiciled at death in Alameda County? (PC 7051) If "No", decedent must have been a non-domiciliary of California who left assets in Alameda County. (7052) See Petition Items 3a and 3c. DOD: 11/14/04 (resided in Oakland, CA at the time of death)
Issue #	Judge's Review	Procedural	No Issue	
n/a	☐	☐	☐	Assets of non-domiciliary decedent in Alameda County? (PC 7052)

Only when witnessed Will/Codicil involved:

Issue #	Judge's	Procedural	No Issue
---------	---------	------------	----------

	Review []	[]	[X]	Original Will/Codicil in Court file? (PC 8200) **Original Will (dated 5/16/97) filed 9/24/25. Original First Codicil (dated 11/15/01) filed on 9/24/25
Issue #	Judge's Review	Procedural	No Issue	
1	[]	[X]	[]	Photographic copy of Will/Codicil attached to Petition? (Item 3f(2)); (PC 8002(b); LCR 7.150) 1. Per Petition, a First Codicil to Last Will and Testament dated 11/15/21 was attached to the Petition. However, no such document has been attached to the Petition. Please address.
Issue #	Judge's Review	Procedural	No Issue	
	[]	[]	[X]	IAEA not precluded under Will/Codicil? (Item 4)
Issue #	Judge's Review	Procedural	No Issue	
	[]	[]	[X]	Is Will/Codicil self-proving? (Item 3f(2)) (PC 8220(b)) If "No", Proof of one Subscribing Witness is needed. (Form DE-131)
Issue #	Judge's Review	Procedural	No Issue	
	[]	[]	[X]	Proof of subscribing witness submitted?
Issue #	Judge's Review	Procedural	No Issue	
	[]	[]	[X]	Is Will/Codicil appropriately executed under Probate Code §6110, et. seq.
Only when holographic Will/Codicil involved:				
Issue #	Judge's Review	Procedural	No Issue	
n/a	[]	[]	[]	Original Will/Codicil in Court file? (PC 8200)
Issue #	Judge's Review	Procedural	No Issue	
n/a	[]	[]	[]	Photographic copy of Will/Codicil attached to Petition? (Item 3f (2))
Issue #	Judge's Review	Procedural	No Issue	
n/a	[]	[]	[]	Typed copy of Will/Codicil attached to petition? (PC 8002(b))
Issue #	Judge's	Procedural	No Issue	

n/a	Review []	[]	[]	Proof of Holographic Instrument filed? (Form DE-135)
-----	---------------	-----	-----	--

Issue #	Judge's Review	Procedural	No Issue	
n/a	[]	[]	[]	Does Will/Codicil meet requirements of Probate Code §6111 for estates of decedents who died on or after January 1, 1985? [Former Probate Code §53 for pre-1985 deaths.]

Only when lost Will/Codicil involved:

Issue #	Judge's Review	Procedural	No Issue	
n/a	[]	[]	[]	Copy of Will/Codicil filed or written statement of the testamentary words or their substance? (PC 8223)

Issue #	Judge's Review	Procedural	No Issue	
n/a	[]	[]	[]	Sufficient proof of the existence of the Will/Codicil filed? (PC §6124)

Only when Will/Codicil is in a foreign language:

Issue #	Judge's Review	Procedural	No Issue	
n/a	[]	[]	[]	Certified English translation filed?

Only for ancillary proceedings (See PC 12500, et. seq.)

Issue #	Judge's Review	Procedural	No Issue	
n/a	[]	[]	[]	Will/codicil or authenticated copy filed? (PC 12521)

Issue #	Judge's Review	Procedural	No Issue	
n/a	[]	[]	[]	Authenticated copy of order admitting will to probate in sister state or foreign nation included? (PC 12521)

Only when no Personal Representative nominated in Will/Codicil (check one):

Issue #	Judge's Review	Procedural	No Issue	
	[]	[]	[X]	No Executor named in Will/Codicil. Probate Code §8441/8461 for administrators with will annexed.

Issue #	Judge's Review	Procedural	No Issue	
	[]	[]	[X]	Executor named in Will/Codicil is deceased or declines

to act. If so, appropriate explanation/written declination(s) filed?

****See below-note re: testate.**

PETITION FOR PROBATE

Issue #	Judge's Review	Procedural	No Issue
	☐	☐	☐

Used current Judicial Council form? (DE-111; Rev. 7/1/2017)

Issue #	Judge's Review	Procedural	No Issue
CT	☒	☐	☐

Intestate: Specify priority of petitioner to act (PC §8460, et. seq. for administrators)

N/A

Testate:

COURT REVIEW: Per the decedent's Will, the nominated executor(s) are as follows:

First Named Executor: Margaret B. Gompertz (spouse; predeceased on 12/30/97)

Second Named Executor: Charles Bates Gompertz (son; post-deceased on 10/2/18)

Third Named Executors: Leslie Ross Gompertz (daughter-in-law)

Attached to the Petition as Attachment 3g(1)(d) are two (2) Declinations to Act as Executor signed by the following:

- a. John C. Ricksen
- b. William C. Robbins III

Per Attachment, they were nominated as executors in the decedent's Codicil date 11/15/21.

Attached as Attachment 3f(2)(b) is a Nomination of Administrator w/Will Annexed signed by Margaret Gompertz (aka Margaret Gompertz Merritts), one of the decedent's daughters, who nominated Joanne Gompertz Martin (a child of the decedent and successor Trustee of the decedent's Trust) to act as the personal representative of the decedent's estate.

Attached as Attachment 3f(2)(b) is a Consent to Act as Administrator signed by Joanne Gompertz Martin.

Issue #	Judge's Review	Procedural	No Issue
	☐	☐	☒

Item 2c (IAEA authority) consistent with caption?

Full IAEA authority

Issue #	Judge's Review	Procedural	No Issue
2	☐	☒	☐

All portions of Petition complete and all questions answered appropriately? If "No", specify:
1. Per Petition, the decedent died in 2004. Please address the delay in filing this Petition for Probate.

Issue #	Judge's Review	Procedural	No Issue
3	☐	☒	☐

Item 8 complete? If "No", specify:
1. Per the decedent's Will, the following were listed:

- a. Charles Gompertz (son)
- b. Margaret Gompertz Merritts (daughter)
- c. Joanne Gompertz Martin (daughter)
- d. Pamela Gompertz Schmitz (granddaughter)
- e. Margaret Gompertz Gilkey (granddaughter)
- f. John Langdon Gompertz II (grandson)
- g. Ross Lee Gompertz (grandson)
- h. David Chandler Melvin (grandson)
- i. Lawrence Henry Melvin (grandson)
- j. Christopher Frank Cooper (grandson)
- k. Daniel Cooper (grandson)
- l. Marian Prentice Schinski (granddaughter)
- m. Elizabeth Gompertz Dorward (granddaughter)
- n. Julie Bates DePolo (granddaughter)
- o. Margaret B. Gompertz (spouse)

Per item#8, Margaret B. Gompertz, Charles Bates Gompertz and Pamela Gompertz Schmitz are deceased. Please address the following:

a. Charles B. Gompertz - has a probate of his estate been opened? If yes, has a personal representative of his estate been appointed by the court? If yes, please list name and current address. Please address.

b. Pamela Gompertz Schmitz - has a probate of her estate been opened? If yes, has a personal representative of her estate been appointed by the court? If yes, please list name and current address. Please address.

c. Leslie Ross Gompertz - address is listed as a P.O. Box. Pursuant to PC 1215a(3), Notice shall be addressed to the person at their place of business or place of residence. Please address.

d. Ross Lee Gompertz - address is listed as a P.O. Box. Pursuant to PC 1215a(3), Notice shall be addressed to the person at their place of business or place of residence. Please address.

e. Daniel Cooper - address is listed as a P.O. Box. Pursuant to PC 1215a(3), Notice shall be addressed to the person at their place of business or place of residence. Please address.

Issue #	Judge's Review	Procedural	No Issue
	☐	☐	☒
	☐	☐	☒

Signature/Declaration complete? If "No", specify:

"Duties and Liabilities of Personal Representative"

(Form DE-147). All personal representatives have executed the acknowledgment of receipt on page 2: Item #2 (address and phone number), printed name, signed, and dated?

****Duties & Liabilities of PR (DE-147) filed on 9/23/25.**

Bond (Items 2d & 3e) (PC 8481)

NOTES: Despite waivers, the Court may still require personal representative to post bond for "good cause" (PC 8481; CRC 7.201(b)). The minimum bond the court requires is \$20,000.

The Court may require bond if petitioner is a non-resident of California (PC 8571; CRC 7.201 (b); LCR 7.175).

Full IAEA authority = estimated value of real and personal property plus probable annual gross income of estate:

\$160,000.00

Limited IAEA authority = estimate value of personal property and probable annual gross income of the estate without value of real property:

Issue #	Judge's Review	Procedural	No Issue
CT	[X]	[]	[]

No Bond because:

COURT REVIEW: Item#3e(2) is marked re: "All beneficiaries have filed written waivers and Will does not require bond." Per the decedent's First Codicil, the two (2) named executors (John Rickson and William Robbins III) were to serve without bond. However, they both declined to serve as executors and Joanne Gompertz Martin was nominated to serve as administrator w/will annexed.

The beneficiary listed in the decedent's Will is the decedent's Trust. Per Petition, the Trustee of the decedent's Trust is Joanne Gompertz Martin, who filed a Waiver of Bond (DE-142) on 9/23/25.

Issue #	Judge's Review	Procedural	No Issue
CT	[X]	[]	[]

Bond may be required because:

****See above-note.**

SERVICE OF NOTICE

Issue #	Judge's Review	Procedural	No Issue
	[]	[]	[X]

Used "Notice of Petition to Administer Estate"? (Form DE-121)

Issue #	Judge's Review	Procedural	No Issue
	[]	[]	[X]

Request for IAEA served in notices?

Issue #	Judge's	Procedural	No Issue
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	Review []	[]	[X]	Served Notice (Petition not required) by mail or by personal delivery at least 15 days prior to hearing date? (PC 8110) 9/17/25
Issue #	Judge's Review	Procedural	No Issue	
4	[]	[X]	[]	Persons served included all beneficiaries and executors named in Will/Codicils and all heirs so far as known or reasonably ascertainable? If "No", specify who was omitted: 1. See above-note re: PC 1215a(3)/P.O. box listed for Leslie Ross Gompertz, Ross Lee Gompertz and Daniel Cooper. Please address.

NOTE:

*Certain charitable gifts require notice and copy of petition to be sent to Attorney General (PC 8111).

*If decedent was a citizen of a foreign country, or if a beneficiary is a citizen of a foreign country, see PC 8113. If beneficiary is resident but not a citizen of foreign country, need declaration regarding citizenship status of beneficiary.

Issue #	Judge's Review	Procedural	No Issue	
	[]	[]	[X]	Proof of Service on reverse side of Notice complete? If "No", specify what was omitted:
Issue #	Judge's Review	Procedural	No Issue	
	[]	[]	[X]	Service of the Notice otherwise free of defects/problems? If "No", specify:

PUBLICATION OF NOTICE:

Issue #	Judge's Review	Procedural	No Issue	
5	[]	[X]	[]	Affidavit showing due publication filed with the Court? (PC 8124) 1. Proof of publication not on file. Please address.
Issue #	Judge's Review	Procedural	No Issue	
	[]	[]	[]	Request for IAEA authority published? (PC 8121; PC 10451)
Issue #	Judge's Review	Procedural	No Issue	
	[]	[]	[]	Publication in proper format?
Issue #	Judge's Review	Procedural	No Issue	
	[]	[]	[]	Published in newspaper of general circulation in City,

County, or State pursuant to Probate Code §8121?

Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☐	Timing: 3 publications, with first publication at least 15 days prior to hearing, and at least 5 days intervening between the first and third publication dates, not counting the publication dates? (PC 8121)

ORDER

Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☒	Proposed order included? (Form DE-140) **Proposed Order received on 9/23/25.
Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☒	Proposed order complete and conforming to petition? If "No", specify:

NOTE: If lost Will/Codicil is proved, the provisions must be set forth at length in the order admitting the Will/Codicil to probate (PC 8223)

NOTE:**California Rule of Court 7.53**

(a) An Amended pleading or an amendment to a pleading requires the same notice of hearing (including publication) as the pleading it amends.

(b) A supplement to a pleading does not require additional notice of hearing, but a copy of the supplement to a pleading must be served if service of a copy of the pleading was required, unless waived by the court.

1 Thomas B. Worth (State Bar No. 73232)
2 FRIEDMAN McCUBBIN LAW GROUP LLP
3 425 California Street, 25th Floor
4 San Francisco, California 94104
5 Telephone: (415) 434-2226
6 tom@fomlaw.com

7 Attorneys for Petitioner
8 17th and Peralta, LLC

ELECTRONICALLY FILED

Superior Court of California,
County of Alameda

10/06/2025 at 03:04:30 PM

By: Sara Hassan,
Deputy Clerk

9 IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA
10 IN AND FOR THE COUNTY OF ALAMEDA

11 In the Matter of the Estate of
12 JOHN L. GOMPERTZ,
13
14 Deceased.

Case No. 25PR142709

DECLARATION IN RESPONSE TO
EXAMINER'S NOTES ISSUED SEPTEMBER
18, 2025

Date: October 17, 2025
Time: 9:45 a.m.
Dept: 202

18 The undersigned declares as follows:

19
20 1. On September 15, 2025, I filed a Petition for Probate of Will and for Letters of
21 Administration with Will Annexed ("Petition") on behalf of my client, 17th and Peralta, LLC.
22 The Petition seeks the appointment of Joanne Gompertz Martin, who is the daughter of the
23 decedent John L. Gompertz ("Decedent"), as Administrator with Will Annexed in connection
24 with Decedent's estate. On September 18, 2025, examiner's notes were issued requesting
25 additional information or documentation, which notes are addressed as follows.

26 2. Issue 1: The original Last Will and Testament of John L. Gompertz dated May
27 16, 1997 ("Will") and the original First Codicil to Last Will and Testament of John L.
28 Gompertz ("First Codicil") dated November 15, 2001, were sent to the Court via Federal

Express on September 23, 2025. A copy of the transmittal letter and Federal Express proof of delivery are attached hereto as Exhibit A.

3. Issue 2. The First Codicil, which is attached hereto as Exhibit B, was inadvertently omitted from the Petition.

4. Issue 3: The issue of executor succession is addressed in the First Codicil.

5. Issue 4: The issue of the delay in filing a Petition for Probate in light of the fact that Decedent died in 2004 is explained in Attachment 2 to the Petition and in the Court's own records. To summarize, ownership a parcel of real property located in San Francisco belonging to Decedent's father, Charles W. Gompertz, ("Subject Property") was not identified until recently. On August 4, 2024, an order was issued by this court in the Estate of Charles W. Gompertz (Case No. 24PR094104) distributing an undivided 50% interest in the Subject Property to Decedent's estate. A probate proceeding is necessary to transfer title to Decedent's interest in the Subject Property to his beneficiaries.

6. Issue 5.a.: A formal probate proceeding has not been and likely will not be initiated for the estate of Charles B. Gompertz because his interest in the subject property will qualify for the Affidavit re Real Property of Small Value proceeding (there are no other assets besides the subject property that are subject to probate). Charles B. Gompertz's surviving spouse and his children are identified in Attachment 8 to the Petition and have been given notice of these proceedings. Neither Charles B. Gompertz's original Will nor a signed copy of the Will have been found; therefore, his interest passes to his heirs via intestate succession.

7. Issue 5.b.: A formal probate proceeding has not been and likely will not be initiated for the estate of Pamela Gompertz Schmitz because her interest in the Subject Property will qualify for the Affidavit re Real Property of Small Value proceeding (there are no other assets besides the Subject Property that are subject to probate). Pamela Gompertz Schmitz's surviving spouse, David Schmitz, is the nominated executor of Pamela Gompertz Schmitz's pour-over will and the successor trustee of the joint trust established by David and

1 Pamela Schmitz is identified in Attachment 8 to the Petition and has been given notice of
2 these proceedings.

3 8. Issue 5.c, 5.d. and 5.e.: Leslie Ross Gomperz, Ross Lee Gompertz and Daniel
4 Cooper all reside in rural Nicasio and there is no mail delivery to their residences. They
5 receive all mail delivery at their respective post office boxes.

6 9. Issue 6. The Duties and Liabilities of Personal Representative form was filed
7 September 23, 2025.

8 10. Issue 7: Waivers of Bond were filed on behalf of Margaret Gompertz, Leslie
9 Ross Gompertz and Joanne Gompertz Martin.

10 11. Issue 8: Bond has been waived by Margaret Gompertz (by her attorney-in-
11 fact), Leslie Ross Gompertz (on behalf of Charles B. Gompertz's estate) and Joanne
12 Gompertz.

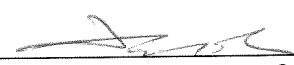
13 12. Issue 9. All beneficiaries, all executors named in the Will and Codicils and all
14 heirs at law have been given notice as required by law.

15 13. Issue 10. The last date of publication is October 10, 2025. It is anticipated that
16 the Proof of Publication will be filed in advance of the hearing date.

17 14. Issue 11. A proposed Order was lodged electronically on September 23, 2025
18 and a hard copy was sent to the court on the same day (see Exhibit A).

19 I declare under penalty of perjury under the laws of the State of California that the
20 foregoing is true and correct. Executed this ____ day of October, 2025 at San Francisco,
21 California.

22 Dated: October 6, 2025

23 
24 Thomas B. Worth, attorney for Petitioner,
17th and Peralta LLC

25 40044084.DOCX

EXHIBIT A

BRANDI P. CHAVIN
STEPHEN C. GOULD
DONALD J. McCUBBIN
KATHLEEN MICHON
GEORGE F. MONTGOMERY II
KATHERINE P. RAGUSA
PHILIP F. SPALDING
THOMAS B. WORTH

MICHAEL A. ROOSEVELT (RETIRED)
RICHARD D. MALTZMAN (RETIRED)
K. BRUCE FRIEDMAN (1929-2023)
D. KEITH BILTER (1941-2016)

FRIEDMAN McCUBBIN LAW GROUP LLP

425 CALIFORNIA STREET, 25TH FLOOR
SAN FRANCISCO, CALIFORNIA 94104
PHONE: 415 434 1363

SHANNON GRASSO
Direct Line: (415) 434-2526
shannon@fomlaw.com

September 23, 2025

VIA FEDERAL EXPRESS

Alameda County Superior Court
2120 Martin Luther King Jr. Way
Berkeley, CA 94704

Estate of John L. Gompertz; Case No. 25PR142709

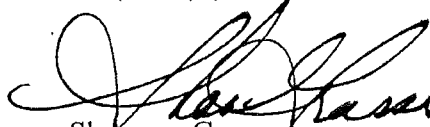
Dear Probate Clerk:

I enclose the following documents in connection with the above-referenced matter:

- Original Last Will and Testament of John L. Gompertz.
- Original First Codicil to Last Will and Testament of John L. Gompertz.
- Original Letters of Administration with Will Annexed signed by Joanne Gompertz Martin.
- Proposed Order for Probate.

Please file the original Will and Codicil and lodge the Letters and order in the file pending the hearing Scheduled for October 17, 2025.

Very truly yours,



Shannon Grasso
Paralegal

cc: Thomas B. Worth



October 02, 2025

Dear Customer,

The following is the proof-of-delivery for tracking number: 884610827560

Delivery Information:

Status:	Delivered	Delivered To:	Shipping/Receiving
Signed for by:	S.Adams	Delivery Location:	
Service type:	FedEx Priority Overnight		
Special Handling:	Deliver Weekday		BERKELEY, CA,
		Delivery date:	Sep 24, 2025 13:10

Shipping Information:

Tracking number:	884610827560	Ship Date:	Sep 23, 2025
		Weight:	0.5 LB/0.23 KG
Recipient:		Shipper:	
BERKELEY, CA, US,		San Francisco, CA, US,	

Reference TBW - 17th & Peralta (JLG)

FedEx Express proof-of-delivery details appear below; however, no signature is currently available for this shipment. Please check again later for a signature.

Thank you for choosing FedEx

EXHIBIT B

FIRST CODICIL TO
LAST WILL AND TESTAMENT
OF
JOHN L. GOMPERTZ

I, JOHN L. GOMPERTZ make, publish and declare this to be a First Codicil to my Last Will and Testament dated May 16, 1997, in the manner following:

FIRST: Article III, paragraph A. is amended, to read as follows:

1. JOHN C. RICKSEN
2. WILLIAM C. ROBBINS III

My executor shall serve without bond.

Any Trustee while in office, and if legally capable, may appoint a successor Trustee, which Trustee must not be a related or subordinate party who is subservient to the wishes of the individual appointing him, to act in the event such Trustee fails to qualify or is unable to act (by reason of physical or mental disability) or ceases to act as Trustee. Any successor Trustee while in office shall have the similar power to appoint a successor independent Trustee.

The word "disability" shall include any physical or mental condition that renders a person unable to conduct his or her regular affairs. Such a condition of disability shall be evidenced by the written certificate or statement of the disabled person's regularly attending physician filed with and accepted by the successor Trustee.

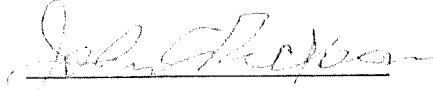
SECOND: In all other respects, I republish, ratify and confirm said Will

dated May 16, 1997.

IN WITNESS WHEREOF, I have hereunto set my hand this 15 day of
November, 2001.


JOHN L. GOMPERTZ

Witnesses:




On the date written below, JOHN L. GOMPERTZ declared to us, the undersigned, that this instrument consisting of three (3) pages, including this page, was the First Codicil to his Will, and he requested us to act as witnesses to it. JOHN L. GOMPERTZ thereupon signed this First Codicil in our presence, all of such being present at the same time. We now at his request, in his presence and in the presence of each other subscribed our names as witnesses, and each of us knows that each signature is the true signature of the person who signed.

We are acquainted with JOHN L. GOMPERTZ. At this time he is over the age of eighteen (18) years and, to the best of our knowledge, is of sound mind and not acting under duress, menace, fraud or undue influence.

Each of us is over eighteen (18) years of age, is a competent witness and resides at the address set forth after his or her name. We declare under penalty of perjury that the foregoing is true and correct.

Executed this 15 day of November, 2001, at Oakland, California.

John G. Gumpert
(Signature)

John C. Rickson
(Printed Name and Address)

7750 14th Ave

Piedmont, CA 94610

Judith L. Conradson
(Signature)

Judith L. Conradson
(Printed Name and Address)

1032 E. Pucella Blvd.
Walnut Creek, CA

Oakland Tribune

(510) 723-2850

3714659

FRIEDMAN MCCUBBIN LAW GROUP, LLP
ACCTS PAYABLE
425 CALIFORNIA ST., 25TH FL.
SAN FRANCISCO, CA 94104

PROOF OF PUBLICATION

FILE NO. John L. Gompertz 25PR142709

Oakland Tribune

The Oakland Tribune

I am a citizen of the United States; I am over the age of eighteen years, and not a party to or interested in the above-entitled matter. I am the Legal Advertising Clerk of the printer and publisher of The Oakland Tribune, a newspaper published in the English language in the City of Oakland, County of Alameda, State of California.

I declare that The Oakland Tribune is a newspaper of general circulation as defined by the laws of the State of California as determined by this court's order, dated December 6, 1951, in the action entitled In the Matter of the Ascertainment and Establishment of the Standing of The Oakland Tribune as a Newspaper of General Circulation, Case Number 237798. Said order states that "The Oakland Tribune is a newspaper of general circulation within the City of Oakland, and the County of Alameda, and the State of California, within the meaning and intent of Chapter 1, Division 7, Title 1 [§§ 6000 et seq.], of the Government Code of the State of California." Said order has not been revoked, vacated, or set aside.

I declare that the notice, of which the annexed is a printed copy, has been published in each regular and entire issue of said newspaper and not in any supplement thereof on the following dates, to wit:

09/26/2025, 10/03/2025, 10/10/2025

I certify (or declare) under the penalty of perjury that the foregoing is true and correct.

Executed at Rio Vista, California.
On this 10th day of October, 2025.



Public Notice Advertising Clerk

Legal No.

0006921548

NOTICE OF PETITION
TO ADMINISTER ESTATE OF:
JOHN L. GOMPERTZ
CASE NUMBER:
25PR142709

To all heirs, beneficiaries, creditors, contingent creditors, and persons who may otherwise be interested in the will or estate, or both, of:
JOHN L. GOMPERTZ.

A **Petition for Probate** has been filed by:
17TH AND PERALTA, LLC in the Superior Court of California, County of ALAMEDA.

The **Petition for Probate** requests that **JOANNE GOMPERTZ MARTIN** be appointed as personal representative to administer the estate of the decedent.

The **Petition** requests the decedent's will and codicils, if any, be admitted to probate. The will and any codicils are available for examination in the file kept by the court.

The **Petition** requests authority to administer the estate under the Independent Administration of Estates Act. (This authority will allow the personal representative to take many actions without obtaining court approval. Before taking certain very important actions, however, the personal representative will be required to give notice to interested persons unless they have waived notice or consented to the proposed action.) The independent administration authority will be granted unless an interested person files an objection to the petition and shows good cause why the court should not grant the authority.

A hearing on the petition will be held in this court as follows:

Date: **10/17/2025** Time: **9:45 AM** Dept: **202**

Address of court:

SUPERIOR COURT OF CALIFORNIA, COUNTY OF ALAMEDA, 2120 Martin Luther King Jr. Wy., Berkeley, CA 94704.

If you object to the granting of the petition, you should appear at the hearing and state your objections or file written objections with the court before the hearing. Your appearance may be in person or by your attorney.

If you are a creditor or a contingent creditor of the decedent, you must file your claim with the court and mail a copy to the personal representative appointed by the court within the later of either (1) **four months** from the date of first issuance of letters to a general personal representative, as defined in section 58(b) of the California Probate Code, or (2) **60 days** from the date of mailing or personal delivery to you of a notice under section 9052 of the California Probate Code.

Other California statutes and legal authority may affect your rights as a creditor. You may want to consult with an attorney knowledgeable in California law.

You may examine the file kept by the court. If you are a person interested in the estate, you may file with the court a **Request for Special Notice** (form DE-154) of the filing of an inventory and appraisal of estate assets or of any petition or account as provided in Probate Code section 1250. A **Request for Special Notice** form is available from the court clerk.

Attorney For Petitioner:

Thomas B. Worth (SBN: 73232)
Friedman McCubbin Law Group LLP
425 California St., 25th Fl.
San Francisco, CA 94104
(415) 434-2226

OT 6921548; Sep. 26; Oct. 3, 10, 2025

ELECTRONICALLY FILED

Superior Court of California,
County of Alameda

10/13/2025 at 12:07:15 PM

By: **Adeline Brophy,**
Deputy Clerk

Oakland Tribune

(510) 723-2850

3714659

FRIEDMAN MCCUBBIN LAW GROUP, LLP
ACCTS PAYABLE
425 CALIFORNIA ST., 25TH FL.
SAN FRANCISCO, CA 94104

PROOF OF PUBLICATION

FILE NO. John L. Gompertz 25PR142709

Oakland Tribune

The Oakland Tribune

I am a citizen of the United States; I am over the age of eighteen years, and not a party to or interested in the above-entitled matter. I am the Legal Advertising Clerk of the printer and publisher of The Oakland Tribune, a newspaper published in the English language in the City of Oakland, County of Alameda, State of California.

I declare that The Oakland Tribune is a newspaper of general circulation as defined by the laws of the State of California as determined by this court's order, dated December 6, 1951, in the action entitled In the Matter of the Ascertainment and Establishment of the Standing of The Oakland Tribune as a Newspaper of General Circulation, Case Number 237798. Said order states that "The Oakland Tribune is a newspaper of general circulation within the City of Oakland, and the County of Alameda, and the State of California, within the meaning and intent of Chapter 1, Division 7, Title 1 [§§ 6000 et seq.], of the Government Code of the State of California." Said order has not been revoked, vacated, or set aside.

I declare that the notice, of which the annexed is a printed copy, has been published in each regular and entire issue of said newspaper and not in any supplement thereof on the following dates, to wit:

09/26/2025, 10/03/2025, 10/10/2025

I certify (or declare) under the penalty of perjury that the foregoing is true and correct.

Executed at Rio Vista, California.
On this 10th day of October, 2025.


Public Notice Advertising Clerk

Legal No.

0006921548

NOTICE OF PETITION
TO ADMINISTER ESTATE OF:
JOHN L. GOMPERTZ
CASE NUMBER:
25PR142709

To all heirs, beneficiaries, creditors, contingent creditors, and persons who may otherwise be interested in the will or estate, or both, of:
JOHN L. GOMPERTZ.

A **Petition for Probate** has been filed by:
17TH AND PERALTA, LLC in the Superior Court of California, County of ALAMEDA.

The **Petition for Probate** requests that **JOANNE GOMPERTZ MARTIN** be appointed as personal representative to administer the estate of the decedent.

The **Petition** requests the decedent's will and codicils, if any, be admitted to probate. The will and any codicils are available for examination in the file kept by the court.

The **Petition** requests authority to administer the estate under the Independent Administration of Estates Act. (This authority will allow the personal representative to take many actions without obtaining court approval. Before taking certain very important actions, however, the personal representative will be required to give notice to interested persons unless they have waived notice or consented to the proposed action.) The independent administration authority will be granted unless an interested person files an objection to the petition and shows good cause why the court should not grant the authority.

A hearing on the petition will be held in this court as follows:
Date: **10/17/2025** Time: **9:45 AM** Dept: **202**
Address of court:
SUPERIOR COURT OF CALIFORNIA, COUNTY OF ALAMEDA, 2120 Martin Luther King Jr. Wy., Berkeley, CA 94704.

If you object to the granting of the petition, you should appear at the hearing and state your objections or file written objections with the court before the hearing. Your appearance may be in person or by your attorney.

If you are a creditor or a contingent creditor of the decedent, you must file your claim with the court and mail a copy to the personal representative appointed by the court within the later of either (1) **four months** from the date of first issuance of letters to a general personal representative, as defined in section 58(b) of the California Probate Code, or (2) **60 days** from the date of mailing or personal delivery to you of a notice under section 9052 of the California Probate Code.

Other California statutes and legal authority may affect your rights as a creditor. You may want to consult with an attorney knowledgeable in California law.

You may examine the file kept by the court. If you are a person interested in the estate, you may file with the court a **Request for Special Notice** (form DE-154) of the filing of an inventory and appraisal of estate assets or of any petition or account as provided in Probate Code section 1250. A **Request for Special Notice** form is available from the court clerk.

Attorney For Petitioner:
Thomas B. Worth (SBN: 73232)
Friedman McCubbin Law Group LLP
425 California St., 25th Fl.
San Francisco, CA 94104
(415) 434-2226
OT 6921548; Sep. 26; Oct. 3, 10, 2025

FILED
ALAMEDA COUNTY

OCT 14 2025

CLERK OF THE SUPERIOR COURT

By  DEPUTY

	Review			
	☐	☐	☒	Original Will/Codicil in Court file? (PC 8200) **Original Will (dated 5/16/97) filed 9/24/25. Original First Codicil (dated 11/15/01) filed on 9/24/25
Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☒	Photographic copy of Will/Codicil attached to Petition? (Item 3f(2)); (PC 8002(b); LCR 7.150) 1. Per Petition, a First Codicil to Last Will and Testament dated 11/15/21 was attached to the Petition. However, no such document has been attached to the Petition. Please address. **Copy of First Codicil dated 11/15/21 is attached to Declaration filed on 10/6/25.
Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☒	IAEA not precluded under Will/Codicil? (Item 4)
Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☒	Is Will/Codicil self-proving? (Item 3f(2)) (PC 8220(b)) If "No", Proof of one Subscribing Witness is needed. (Form DE-131)
Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☒	Proof of subscribing witness submitted?
Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☒	Is Will/Codicil appropriately executed under Probate Code §6110, et. seq.
Only when holographic Will/Codicil involved:				
Issue #	Judge's Review	Procedural	No Issue	
n/a	☐	☐	☐	Original Will/Codicil in Court file? (PC 8200)
Issue #	Judge's Review	Procedural	No Issue	
n/a	☐	☐	☐	Photographic copy of Will/Codicil attached to Petition? (Item 3f (2))
Issue #	Judge's Review	Procedural	No Issue	
n/a	☐	☐	☐	Typed copy of Will/Codicil attached to petition? (PC

8002(b))

Issue #	Judge's Review	Procedural	No Issue	
n/a	☐	☐	☐	Proof of Holographic Instrument filed? (Form DE-135)

Issue #	Judge's Review	Procedural	No Issue	
n/a	☐	☐	☐	Does Will/Codicil meet requirements of Probate Code §6111 for estates of decedents who died on or after January 1, 1985? [Former Probate Code §53 for pre-1985 deaths.]

Only when lost Will/Codicil involved:

Issue #	Judge's Review	Procedural	No Issue	
n/a	☐	☐	☐	Copy of Will/Codicil filed or written statement of the testamentary words or their substance? (PC 8223)

Issue #	Judge's Review	Procedural	No Issue	
n/a	☐	☐	☐	Sufficient proof of the existence of the Will/Codicil filed? (PC §6124)

Only when Will/Codicil is in a foreign language:

Issue #	Judge's Review	Procedural	No Issue	
n/a	☐	☐	☐	Certified English translation filed?

Only for ancillary proceedings (See PC 12500, et. seq.)

Issue #	Judge's Review	Procedural	No Issue	
n/a	☐	☐	☐	Will/codicil or authenticated copy filed? (PC 12521)

Issue #	Judge's Review	Procedural	No Issue	
n/a	☐	☐	☐	Authenticated copy of order admitting will to probate in sister state or foreign nation included? (PC 12521)

Only when no Personal Representative nominated in Will/Codicil (check one):

Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☒	No Executor named in Will/Codicil. Probate Code §8441/8461 for administrators with will annexed.

Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☒	Executor named in Will/Codicil is deceased or declines to act. If so, appropriate explanation/written declination(s) filed? **See below-note re: testate.

PETITION FOR PROBATE

Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☐	Used current Judicial Council form? (DE-111; Rev. 7/1/2017)
Issue #	Judge's Review	Procedural	No Issue	
CT	☒	☐	☐	Intestate: Specify priority of petitioner to act (PC §8460, et. seq. for administrators) N/A Testate: COURT REVIEW: Per the decedent's Will, the nominated executor(s) are as follows: First Named Executor: Margaret B. Gompertz (spouse; predeceased on 12/30/97) Second Named Executor: Charles Bates Gompertz (son; post-deceased on 10/2/18) Third Named Executors: Leslie Ross Gompertz (daughter-in-law) Attached to the Petition as Attachment 3g(1)(d) are two (2) Declinations to Act as Executor signed by the following: a. John C. Ricksen b. William C. Robbins III Per Attachment, they were nominated as executors in the decedent's First Codicil dated 11/15/21. Attached as Attachment 3f(2)(b) is a Nomination of Administrator w/Will Annexed signed by Margaret Gompertz (aka Margaret Gompertz Merritts), one of the decedent's daughters, who nominated Joanne Gompertz Martin (a child of the decedent and successor Trustee of the decedent's Trust) to act as the personal representative of the decedent's estate. Attached as Attachment 3f(2)(b) is a Consent to Act as Administrator signed by Joanne Gompertz Martin.

Issue #	Judge's Review	Procedural	No Issue
	[]	[]	[X]

Item 2c (IAEA authority) consistent with caption?
[Full IAEA authority](#)

Issue #	Judge's Review	Procedural	No Issue
	[]	[]	[X]

All portions of Petition complete and all questions answered appropriately? If "No", specify:
1. Per Petition, the decedent died in 2004. Please address the delay in filing this Petition for Probate.

****Per Declaration filed on 10/6/25: "The issue of the delay in filing a Petition for Probate in light of the fact that Decedent died in 2004 is explained in Attachment 2 to the Petition and in the Court's own records, To summarize, ownership a parcel of real property located in San Francisco belonging to Decedent's father, Charles W. Gompertz, ("Subject Property") was not identified until recently. On August 4, 2024, an order was issued by this court in the Estate of Charles W. Gompertz (Case No, 24PR094104) distributing an undivided 50% interest in the Subject Property to Decedent's estate. A probate proceeding is necessary to transfer title to Decedent's interest in the Subject Property to his beneficiaries."**

Issue #	Judge's Review	Procedural	No Issue
CT	[X]	[]	[]

Item 8 complete? If "No", specify:

1. Per the decedent's Will, the following were listed:

- a. Charles Gompertz (son)
- b. Margaret Gompertz Merritts (daughter)
- c. Joanne Gompertz Martin (daughter)
- d. Pamela Gompertz Schmitz (granddaughter)
- e. Margaret Gompertz Gilkey (granddaughter)
- f. John Langdon Gompertz II (grandson)
- g. Ross Lee Gompertz (grandson)
- h. David Chandler Melvin (grandson)
- i. Lawrence Henry Melvin (grandson)
- j. Christopher Frank Cooper (grandson)
- k. Daniel Cooper (grandson)
- l. Marian Prentice Schinski (granddaughter)
- m. Elizabeth Gompertz Dorward (granddaughter)
- n. Julie Bates DePolo (granddaughter)
- o. Margaret B. Gompertz (spouse)

Per item#8, Margaret B. Gompertz, Charles Bates Gompertz and Pamela Gompertz Schmitz are deceased. Please address the following:

a. Charles B. Gompertz - has a probate of his estate been opened? If yes, has a personal representative of his estate been appointed by the court? If yes, please list name and current address. Please address.

COURT REVIEW: Per Declaration filed on 10/6/25: "A formal probate proceeding has not been and likely will not

be initiated for the estate of Charles B. Gompertz because his interest in the subject property will qualify for the Affidavit re Real Property of Small Value proceeding (there are no other assets besides the subject property that are subject to probate). Charles B. Gompertz's surviving spouse and his children are identified in Attachment 8 to the Petition and have been given notice of these proceedings. Neither Charles B. Gompertz's original Will nor a signed copy of the Will have been found; therefore, his interest passes to his heirs via intestate succession."

b. Pamela Gompertz Schmitz - has a probate of her estate been opened? If yes, has a personal representative of her estate been appointed by the court? If yes, please list name and current address. Please address.

COURT REVIEW: Per Declaration filed on 10/6/25: "A formal probate proceeding has not been and likely will not be initiated for the estate of Pamela Gompertz Schmitz because her interest in the Subject Property will qualify for the Affidavit re Real Property of Small Value proceeding (there are no other assets besides the Subject Property that are subject to probate). Pamela Gompertz Schmitz's surviving spouse, David Schmitz, is the nominated executor of Pamela Gompertz Schmitz's pour-over will and the successor trustee of the joint trust established by David and Pamela Schmitz is identified in Attachment 8 to the Petition and has been given notice of these proceedings.

c. Leslie Ross Gompertz - address is listed as a P.O. Box. Pursuant to PC 1215a(3), Notice shall be addressed to the person at their place of business or place of residence. Please address.

d. Ross Lee Gompertz - address is listed as a P.O. Box. Pursuant to PC 1215a(3), Notice shall be addressed to the person at their place of business or place of residence. Please address.

e. Daniel Cooper - address is listed as a P.O. Box. Pursuant to PC 1215a(3), Notice shall be addressed to the person at their place of business or place of residence. Please address.

COURT REVIEW: Per Declaration filed on 10/6/25, the three above-listed beneficiaries reside in rural Nicasio, CA and there is no mail delivery to their addresses. All mail delivery is to their respective P.O. Boxes.

Issue #	Judge's Review	Procedural	No Issue
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☐	☐	☒	Signature/Declaration complete? If "No", specify:
☐	☐	☒	"Duties and Liabilities of Personal Representative"? (Form DE-147). All personal representatives have executed the acknowledgment of receipt on page 2: Item #2 (address and phone number), printed name, signed, and dated? **Duties & Liabilities of PR (DE-147) filed on 9/23/25.

Bond (Items 2d & 3e) (PC 8481)

NOTES: Despite waivers, the Court may still require personal representative to post bond for "good cause" (PC 8481; CRC 7.201(b)). The minimum bond the court requires is \$20,000.

The Court may require bond if petitioner is a non-resident of California (PC 8571; CRC 7.201 (b); LCR 7.175).

Full IAEA authority = estimated value of real and personal property plus probable annual gross income of estate:

[\\$160,000.00](#)

Limited IAEA authority = estimate value of personal property and probable annual gross income of the estate without value of real property:

Issue #	Judge's Review	Procedural	No Issue
CT	☒	☐	☐

No Bond because:

[COURT REVIEW: Item#3e\(2\) is marked re: "All beneficiaries have filed written waivers and Will does not require bond." Per the decedent's First Codicil, the two \(2\) named executors \(John Rickson and William Robbins III\) were to serve without bond. However, they both declined to serve as executors and Joanne Gompertz Martin was nominated to serve as administrator w/will annexed.](#)

[The beneficiary listed in the decedent's Will is the decedent's Trust. Per Petition, the Trustee of the decedent's Trust is Joanne Gompertz Martin, who filed a Waiver of Bond \(DE-142\) on 9/23/25.](#)

[**Waiver\(s\) of Bond have been filed by the following on 9/23/25:](#)

[a. Joanne Gompertz Martin
b. Leslie Ross Gompertz on behalf of the Estate of Charles B. Gompertz
c. Margaret Gompertz by Elizabeth Gompertz Huntington, attorney-in-fact](#)

Issue #	Judge's Review	Procedural	No Issue
CT	☒	☐	☐

Bond may be required because:

[**See above-note.](#)

SERVICE OF NOTICE

Issue #	Judge's Review []	Procedural []	No Issue [X]	Used "Notice of Petition to Administer Estate"? (Form DE-121)
Issue #	Judge's Review []	Procedural []	No Issue [X]	Request for IAEA served in notices?
Issue #	Judge's Review []	Procedural []	No Issue [X]	Served Notice (Petition not required) by mail or by personal delivery at least 15 days prior to hearing date? (PC 8110) 9/17/25
Issue #	Judge's Review []	Procedural []	No Issue [X]	Persons served included all beneficiaries and executors named in Will/Codicils and all heirs so far as known or reasonably ascertainable? If "No", specify who was omitted: 1. See above-note re: PC 1215a(3)/P.O. box listed for Leslie Ross Gompertz, Ross Lee Gompertz and Daniel Cooper. Please address. **Procedural issue cleared by Declaration filed on 10/6/25.

NOTE:

*Certain charitable gifts require notice and copy of petition to be sent to Attorney General (PC 8111).

*If decedent was a citizen of a foreign country, or if a beneficiary is a citizen of a foreign country, see PC 8113. If beneficiary is resident but not a citizen of foreign country, need declaration regarding citizenship status of beneficiary.

Issue #	Judge's Review []	Procedural []	No Issue [X]	Proof of Service on reverse side of Notice complete? If "No", specify what was omitted:
Issue #	Judge's Review []	Procedural []	No Issue [X]	Service of the Notice otherwise free of defects/problems? If "No", specify:

PUBLICATION OF NOTICE:

Issue #	Judge's Review []	Procedural []	No Issue [X]	Affidavit showing due publication filed with the Court?
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(PC 8124)

[**Proof of publication filed on 10/13/25 and 10/14/25.](#)

Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☒	Request for IAEA authority published? (PC 8121; PC 10451)

Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☒	Publication in proper format?

Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☒	Published in newspaper of general circulation in City, County, or State pursuant to Probate Code §8121?

Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☒	Timing: 3 publications, with first publication at least 15 days prior to hearing, and at least 5 days intervening between the first and third publication dates, not counting the publication dates? (PC 8121)

ORDER

Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☒	Proposed order included? (Form DE-140) **Proposed Order received on 9/23/25.

Issue #	Judge's Review	Procedural	No Issue	
	☐	☐	☒	Proposed order complete and conforming to petition? If "No", specify:

NOTE: If lost Will/Codicil is proved, the provisions must be set forth at length in the order admitting the Will/Codicil to probate (PC 8223)

NOTE:**California Rule of Court 7.53**

(a) An Amended pleading or an amendment to a pleading requires the same notice of hearing (including publication) as the pleading it amends.

(b) A supplement to a pleading does not require additional notice of hearing, but a copy of the supplement to a pleading must be served if service of a copy of the pleading was required, unless waived by the court.

SUPERIOR COURT OF CALIFORNIA, COUNTY OF ALAMEDA

Berkeley Courthouse, Department 202

JUDICIAL OFFICER: HONORABLE BARBARA DICKINSON

Courtroom Clerk: M. Scott Sanchez

CSR: Not Reported

25PR142709

October 17, 2025
9:45 AM

ESTATE OF: JOHN L GOMPERTZ

MINUTES

APPEARANCES:

Petitioner 17th and Peralta LLC not appearing.

NATURE OF PROCEEDINGS: General Probate Petition for Probate of Will and for Letters of Administration with Will Annexed filed by 17th and Peralta LLC (Petitioner) on 09/15/2025

No party contests the tentative pre grant.

The 09/15/2025 Petition for Probate of Will and for Letters of Administration with Will Annexed is Granted.

The Court orders Joanne Gompertz Martin is/are appointed personal representative(s): administrator(s) with will annexed and letters shall issue on qualification.

Full Authority is granted to administer the estate under the Independent Administration of Estates Act.

Bond is not required.

Decedent's will dated 05/16/1997 admitted.

Codicil(s) dated 11/05/2001.

The following referee has been appointed:

Name: Lonnie S Dillard

Email: N/A

Address: 4200 Park Boulevard PMB 538 Oakland, CA 94602 [Business]

Telephone Number: (510) 482-5247

Review Filing Petition for Final Distribution or 12200 Status Report is scheduled for 12/18/2026 at 10:45 AM in Department 202 at Berkeley Courthouse.

SUPERIOR COURT OF CALIFORNIA, COUNTY OF ALAMEDA

MS

By: M. Sanchez, Deputy Clerk
Minutes of: 10/17/2025
Entered on: 10/17/2025

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, state bar number, and address):
 Thomas B. Worth (SBN: 73232)
 Friedman McCubbin Law Group LLP
 425 California St., 25th Fl.
 San Francisco, CA 94104

TELEPHONE AND FAX NOS.:
 415-434-2226

FOR COURT USE ONLY

FILED
 ALAMEDA COUNTY

OCT 22 2025

CLERK OF THE SUPERIOR COURT

By [Signature] Dwy

ATTORNEY FOR (Name): 17th and Peralta, LLC, Petitioner

SUPERIOR COURT OF CALIFORNIA, COUNTY OF ALAMEDA

STREET ADDRESS: 2120 Martin Luther King Jr. Way

MAILING ADDRESS:

CITY AND ZIP CODE: Berkeley, CA 94704

BRANCH NAME:

ESTATE OF (Name):

JOHN L. GOMPERTZ

DECEDENT

LETTERS

- ☐ TESTAMENTARY ☐ OF ADMINISTRATION
☒ OF ADMINISTRATION WITH WILL ANNEXED ☐ SPECIAL ADMINISTRATION

CASE NUMBER:
 25PR142709

LETTERS

- ☒ The last will of the decedent named above having been proved, the court appoints (name):
 JOANNE GOMPERTZ MARTIN
 - ☐ executor.
 - ☒ administrator with will annexed.
- ☐ The court appoints (name):
 - ☐ administrator of the decedent's estate.
 - ☐ special administrator of decedent's estate
 - ☐ with the special powers specified in the *Order for Probate*.
 - ☐ with the powers of a general administrator.
 - ☐ letters will expire on (date):
- ☒ The personal representative is authorized to administer the estate under the Independent Administration of Estates Act ☒ with full authority ☐ with limited authority (no authority, without court supervision, to (1) sell or exchange real property or (2) grant an option to purchase real property or (3) borrow money with the loan secured by an encumbrance upon real property).
- ☐ The personal representative is not authorized to take possession of money or any other property without a specific court order.

AFFIRMATION

- ☐ PUBLIC ADMINISTRATOR: No affirmation required (Prob. Code, § 7621(c)).
- ☒ INDIVIDUAL: I solemnly affirm that I will perform the duties of personal representative according to law.
- ☐ INSTITUTIONAL FIDUCIARY (name):

I solemnly affirm that the institution will perform the duties of personal representative according to law. I make this affirmation for myself as an individual and on behalf of the institution as an officer.
 (Name and title):

- Executed on (date): 9/17/25
 at (place): Greenbrae, California.

► Joanne Gompertz Martin
 (SIGNATURE)

CERTIFICATION

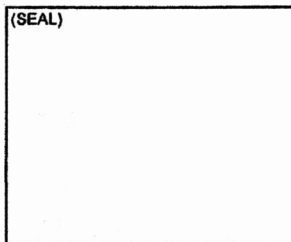
I certify that this document is a correct copy of the original on file in my office and the letters issued the personal representative appointed above have not been revoked, annulled, or set aside, and are still in full force and effect.

WITNESS, clerk of the court, with seal of the court affixed.



Date: OCT 22 2025
 Clerk, by Chad Finke

Norman - [Signature]
 (DEPUTY)



Date:

Clerk, by

(DEPUTY)